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IN THE
UTAH SUPREME COURT

TYLER JAMES ROBINSON,
Defendant/Petitioner,

v.

STATE OF UTAH,
Plaintiff/Respondent.

RESPONSE OPPOSING
DEFENDANT'S PETITION FOR
PERMISSION TO APPEAL
INTERLOCUTORY ORDER

Case No. 20251388-SC
District Case No. 251403576

The State hereby opposes Defendant Tyler Robinson's petition for interlocutory appeal. Robinson seeks review of the trial court's order denying his motion to appear without restraints at all pre-trial hearings. The Court should deny Robinson's petition as premature because the trial court has not yet decided the extent of restraints necessary. Robinson also shows no likelihood of success on appeal: first, federal and Utah authorities do not support Robinson's claimed

federal right to appear without restraints at pre-trial hearings. Second, even if he claimed a valid right, the right was satisfied by the trial court's individualized determination that Robinson should be restrained, and its orders minimizing the risk of prejudice. With no likelihood of success on appeal, interlocutory review would serve merely to delay trial.

BACKGROUND

A. Relevant facts.¹

Robinson killed political activist Charlie Kirk as Mr. Kirk addressed an audience at Utah Valley University. Add. A at 3. He fired the single, fatal shot with a bolt-action rifle from a rooftop 160 yards away. *Id.* 4-5. Many, including children, were within feet of Mr. Kirk when he was shot. *Id.* 4.

Recognizing Robinson from a surveillance image broadcast by police, Robinson's parents persuaded him to surrender to the Washington County Sheriff. *Id.* 6. Police later obtained a series of messages Robinson had sent to his significant other. *Id.* 7-9. In a handwritten note, he explained that "I had the opportunity to take out Charlie Kirk and I'm going to take it." *Id.* 7. In text messages after the

¹ At this stage, these facts "remain allegations." *State v. Stewart*, 2018 UT 24, ¶2 n.1, 438 P.3d 515. However, the State "recount[s] the facts as alleged and in a light most favorable to the ruling below." *Id.* (internal quotation marks and citation omitted).

shooting, Robinson confirmed he was “the one who did it,” because “I had enough of his hatred. Some hate can’t be negotiated out.” *Id.* 8. Robinson said he had been “planning this” for “a bit over a week.” *Id.* 8-9. He explained he was “stuck in orem” because he had to “grab [his] rifle” from his “drop point.” *Id.* The “only thing I left was the rifle wrapped in a towel.” *Id.* “If I am able to grab my rifle unseen, I will have left no evidence.” *Id.* Quoting cryptic language he had inscribed on the rifle cartridges, Robinson worried that if police found the rifle, he might eventually see the inscriptions “on fox news [and] I might have a stroke.” *Id.* 8.

Police found Robinson’s rifle at the scene of the shooting, wrapped in a towel. *Id.* 5. DNA consistent with Robinson’s was on the trigger, the towel, the single spent casing, and two of the three unfired cartridges. *Id.* 6. After Robinson learned that “the feds released a photo of the rifle,” he instructed his significant other to “delete this exchange” and to “stay silent.” *Id.* 9.

B. Relevant procedural history.

The State charged Robinson with one count of aggravated murder, felony discharge of a firearm, and violence in the presence of a child; and two counts each of obstruction of justice and witness tampering. *Id.* 1-3. Denying bail, the court found “substantial evidence to support the charge[s].” Add. B. The State seeks the death penalty. Add. C.

Robinson asked the trial court to allow him to appear at pre-trial hearings in civilian clothing and without restraints. Add. D.² He claimed a constitutional right to appear at all proceedings unrestrained, absent an individualized determination that restraints are necessary. *Id.* The State opposed the motion,

[REDACTED]

[REDACTED] Add. E.

Though there was “no controlling precedent requiring” it, the court granted Robinson’s motion to appear in civilian clothing. Add. F at 4-5. The court found that widespread publicity, with its risk of prospective juror influence, justified this “deviation from the general court security plan.” *Id.*

As to pre-trial restraints, the court acknowledged that Robinson had no criminal history or misconduct while in custody, and recognized that restraints might prejudice potential jurors, undermine Robinson’s dignity, or make it difficult to communicate with counsel. Add. G at 7.

But on balance, the court found that the security risks weighed heavier. *Id.* The court’s paramount concern was courtroom safety. *Id.* 8. Robinson’s charges were “extraordinarily serious, carrying potential penalties of life imprisonment or

² The motion also referred to trial restraints; however, the sole issue on appeal is restraints during pre-trial bench hearings. *See* Pet.7.

death.” *Id.* 7-8. The court expected the “psychological effects” of the capital charges to lead to “strong emotion” and “disruption or commotion” in the absence of “strong security protocols.” *Id.*; Add. F at 6-7. Additionally, the court anticipated large courtroom crowds due to the “unique” and intense publicity surrounding the trial. Add. G at 52, 59. Thus, “so many variables in [the] courtroom” were beyond the court’s control, such as how Robinson might react to a look or a comment from the gallery. *Id.* 59. [REDACTED]

[REDACTED] Add. E. And the court had already diluted security by authorizing Robinson to appear in civilian clothing. Add. F at 4. Given all of these factors, the court concluded that to ensure courtroom safety, Robinson should be restrained at pre-trial hearings. *Id.* 7.

But the court also took steps to minimize prejudice. It ordered the Sheriff to conduct an “individualized assessment of the risks associated with this case and secure Mr. Robinson in the least restrictive manner available to mitigate those risks,” and told Robinson that he could challenge the Sheriff’s assessment if he disagreed with it. *Id.* [REDACTED]

[REDACTED] Add. H at 5. And the court issued a standing order prohibiting photography and videography whenever the restraints are visible,

such as when Robinson is standing or entering or exiting the courtroom. Add. I at 5.

ISSUES AND STANDARD OF REVIEW

1. Does an in-custody defendant have a qualified federal constitutional right to appear without restraints at non-jury hearings?

Standard of Review. “We review constitutional interpretation issues for correctness.” *State v. Barnett*, 2023 UT 20, ¶8, 537 P.3d 212 (quotation simplified).

2. If a qualified constitutional right of non-restraint applies to non-jury hearings, did the trial court abuse its discretion by determining that restraints are necessary here to ensure courtroom order and security?

Standard of Review. Trial courts need “latitude in making individualized security determinations.” *Deck v. Missouri*, 544 U.S. 622, 632 (2005). The decision to restrain a defendant “rests in the sound discretion of the trial judge and the test on review is whether the trial judge has abused that discretion.” *State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991). A trial court’s decision “will not be disturbed on appeal unless that discretion was clearly abused.” *United States v. Hack*, 782 F.2d 862, 867 (10th Cir. 1986).

ARGUMENT

Interlocutory appeals are disfavored. This Court generally “allow[s] the case to come to a conclusion in the trial court,” then “review[s] the entire trial proceedings in one appeal.” *State v. Troyer*, 866 P.2d 528, 530 (Utah 1993). An interlocutory appeal is justified only if immediate review is “essential to adjudicate principles of law or procedure in advance as a necessary foundation upon which the trial may proceed; or if there is a high likelihood that the litigation can be finally disposed of on such an appeal.” *Houghton v. Utah Dep’t of Health*, 2008 UT 86, ¶14, 206 P.3d 287 (citation omitted). Cases that satisfy this standard are “rare,” *State ex rel. A.F.*, 2006 UT App 200, ¶10 n.2, 138 P.3d 65, and this is not one of them.

The Court should deny Robinson’s petition. First, the petition is premature. Second, Robinson shows no likelihood of success on appeal: his claimed constitutional right does not exist, and even if it did, the trial court was within its discretion to order restraints in Robinson’s particular case.

I. Robinson’s claim is not ripe for review.

Robinson’s pre-trial restraint claim has not “yet matured to a point that warrants a decision.” *See Salt Lake Cnty. v. State*, 2020 UT 27, ¶18, 466 P.3d 158 (quotation simplified). Robinson’s arguments largely rise and fall with the precise manner of restraint: after all, the less restrictive the restraints, the less they impact

courtroom decorum and communication with counsel. But although the court ordered pre-trial restraints, it also ordered the Sheriff to assess how minimal those restraints can be. Add. F at 7. To date, the court has not yet adopted any particular manner of restraint. And the court has invited Robinson to renew his motion if he disagrees with the Sheriff's assessment. *Id.* Thus, the trial court's ruling on Robinson's motion is not yet ripe; this Court cannot review the effects of a yet-undetermined level of pre-trial restraint. Robinson assumes that in the meantime, prospective jurors will see media images of him in restraints. But this speculation ignores the court's standing order prohibiting photography or videography of the restraints. In short, the trial court's order remains preliminary, and all claimed prejudice is speculative. This Court should decline to hear Robinson's premature appeal.

II. Robinson shows no likelihood of reversal; interlocutory review would only delay trial.

Robinson asserts a federal constitutional right to appear without restraints at pre-trial hearings. But all existing federal appellate precedent holds that the constitutional right of non-restraint applies only in the presence of the jury. Thus, courts are free to enforce policies requiring pre-trial restraints for in-custody defendants. Therefore, the court did not err in ordering Robinson's restraint here. And even if the qualified right of non-restraint applied to pre-trial hearings, the

trial court here conducted an individualized analysis and determined that restraints are necessary in this particular case. Robinson shows no abuse of discretion in that determination. Thus, Robinson shows no likelihood of success on the merits, and interlocutory review would serve only to delay trial.

a. There is no pre-trial constitutional right of non-restraint.

Relying on *Deck v. Missouri*, 544 U.S. 622 (2005), Robinson claims a constitutional right to be free of restraints at all hearings, trial or not, jury or not. Pet.9-10. Although *Deck*'s holding does not apply to non-jury hearings, Robinson argues that its reasoning should. Pet.10. But *Deck* didn't just fail to create a pre-trial right of non-restraint—it disavowed such a right. And every federal appellate court that has properly addressed the issue, including the Tenth Circuit, confirms that *Deck*'s reasoning does not apply to non-jury proceedings.³ In short, there is no federal pre-trial right of non-restraint.⁴

Under *Deck*, “the Fifth and Fourteenth Amendments prohibit the use of physical restraints visible to the jury” unless the trial court in its discretion makes

³ Robinson cites *United States v. Sanchez-Gomez*, 859 F.3d 649 (9th Cir. 2017) as holding otherwise. Pet.11. But as discussed below, the Ninth Circuit's decision was vacated for lack of jurisdiction. *See* 584 U.S. 381 (2018).

⁴ Because there is no pre-trial constitutional right of non-restraint, there is no constitutional violation “at each and every hearing” as Robinson claims, *see* Pet.17, and therefore no need for pre-trial review or remedy.

a finding of necessity “specific to a particular trial.” *Deck*, 544 U.S. at 629. *Deck* extended this qualified right to jury sentencing phases. *See id.* 632.

Deck’s holding relied in part on the three broad principles Robinson identifies: the presumption of innocence, the need for dignity in judicial proceedings, and a defendant’s right to assist in his own defense, *see* Pet.11; *Deck*, 544 U.S. at 630-32. But *Deck* further explains that at core, the right of non-restraint derives from a common-law rule “meant to protect defendants appearing *at trial before a jury*.” *Id.* 626 (emphasis added). “Blackstone and other English authorities recognized that the rule did not apply at the time of arraignment, or like proceedings before the judge.” *Id.* (quotation simplified).

Thus, under *Deck* and Blackstone, the right of non-restraint applies only in the presence of the jury — not at pre-trial proceedings. The Sixth and Tenth Circuits have confirmed as much: “*Deck*’s facts and holding ... concerned only *visible* restraints *at trial*. The Supreme Court was careful to repeat this limitation throughout its opinion.” *Ochoa v. Workman*, 669 F.3d 1130, 1146 (10th Cir. 2012) (ellipsis and first emphasis in original) (quoting *Mendoza v. Berghuis*, 544 F.3d 650, 654 (6th Cir. 2008)).⁵ “*Deck* makes clear” that despite its dicta on courtroom dignity

⁵ For instance, “the Fifth and Fourteenth Amendments prohibit the use of physical restraints *visible to the jury*.” *Deck*, 544 U.S. at 629 (emphasis added).

and attorney-client communication, “the potential impact on the jury” is the true touchstone of the right of non-restraint. *Id.* 1145.

Blackstone, *Deck*, *Ochoa*, and *Mendoza* are not alone. Two years after *Deck*, the Ninth Circuit upheld a U.S. Marshals’ district-wide policy broadly requiring leg restraints at preliminary hearings across the Central District of California. *United States v. Howard*, 480 F.3d 1005, 1008, 1014 (9th Cir. 2007). Like *Deck*, *Howard* acknowledged that widespread use of restraints might affect the “dignity and decorum of judicial proceedings.” *Id.* 1009. Nonetheless, district-wide safety interests legitimately “outweighed this concern.” *Id.*

Likewise, the Second Circuit “reject[s], as a matter of law,” the notion that a court must make individualized restraint decisions in non-jury sentencing hearings. *United States v. Zuber*, 118 F.3d 101, 103 (2d Cir. 1997). In bench proceedings, “it is not the rule” that a hearing is required before imposing restraints. *Id.* 104. “[W]e disagree that it violates due process for a trial judge (in the absence of the jury) to defer to the judgment of the U.S. Marshals Service

“[C]ourts cannot routinely place defendants in ... physical restraints *visible to the jury* during the penalty phase.” *Id.* 633 (emphasis added). A court then must not, “without adequate justification, order[] the defendant to wear shackles that will be *seen by the jury*.” *Id.* 635 (emphasis added).

without comment.” *Id.* 104 n.2.⁶

So too the Eleventh Circuit. “[T]he Supreme Court made clear in *Deck* that the rule was meant to protect defendants appearing at trial before a jury.” *United States v. LaFond*, 783 F.3d 1216, 1225 (11th Cir. 2015) (quotation simplified). The defendant there, like Robinson, argued that under *Deck*, his restraints were “inherently prejudicial,” constituted an “indignity,” and made him “unable to write.” *Id.* But the Eleventh Circuit held that “the rule against shackling pertains only to a jury trial.” *Id.*

And Utah’s analogous jurisprudence is consistent with this federal consensus.⁷ For instance, it is not error to try a defendant in prison clothing at a non-jury trial. *State v. Cravens*, 2000 UT App 344, ¶¶16-17, 15 P.3d 635 (citation omitted). “Quite simply, the rationale behind” the constitutional rule “cannot

⁶ Although *Zuber* predated *Deck*, it anticipated Robinson’s trio of *Deck* concerns: “juror bias,” “dignity and decorum of judicial proceedings,” and the defendant’s “ability to communicate with his counsel.” *Zuber*, 118 F.3d 103. Indeed, the Supreme Court had weighed those same concerns decades before *Deck*. See, e.g., *Illinois v. Allen*, 397 U.S. 337, 344 (1970) (courtroom restraints undermine the “dignity and decorum of judicial proceedings,” and affect a defendant’s “ability to communicate with his counsel”).

⁷ Robinson observes that *Deck* superseded this Court’s decision in *State v. Young*, 853 P.3d 327 (Utah 1993), by holding that the right of non-restraint applies at jury sentencing. But jury sentencing is not at issue here. Thus, this case gives the Court no occasion to revisit its holding in *Young*.

logically be applied to bench trials.” *Id.* ¶17.

Blackstone, the Supreme Court, and the Second, Sixth, Ninth, Tenth, and Eleventh Circuits all agree: the federal constitutional right of non-restraint applies only in jury proceedings. No federal appellate case holds otherwise.⁸

Despite this overwhelming consensus, Robinson relies on the Ninth Circuit’s decision in *United States v. Sanchez-Gomez*, 859 F.3d 649 (9th Cir. 2017), *vacated and remanded*, 584 U.S. 381 (2018). His reliance is misplaced. True, the Ninth Circuit attempted to hold that the right of non-restraint applies at all stages of a criminal proceeding. *Sanchez-Gomez*, 859 F.3d at 666. That holding, at odds with the Ninth Circuit’s earlier decision in *Howard*, 480 F.3d at 1008, 1014, also created a federal circuit split. But the circuit split evaporated in 2018 when the United States Supreme Court vacated *Sanchez-Gomez*, explaining that the Ninth Circuit lacked jurisdiction. 584 U.S. at 385-86, 394. And “vacated court orders are void *ab initio* and thus lack any prospective legal effect.” *Hewitt v. United States*, 606 U.S.

⁸ Robinson points to a single isolated federal district court decision, *United States v. Williams*, 736 F. Supp. 3d 400 (W.D. Va. 2024). Pet.13. But *Williams* itself recognized that it was striking out on its own, observing that “the Supreme Court in *Deck* ultimately cabined its decision to ... jury sentencings,” the “Ninth Circuit’s opinion in *Sanchez-Gomez* was vacated,” and the Eleventh Circuit “squarely rejected the notion that this right extended to sentencing hearings before judges.” 736 F. Supp. 3d at 406.

419, 431 (2025). The Ninth Circuit’s attempted innovation, therefore, is no longer law.

With the tide of federal authorities rolling against him, Robinson clings finally to a smattering of sister state courts’ decisions creating his proposed right. Pet.12-14.⁹ Insofar as those decisions rest on state law grounds, they are inapposite: Robinson raises no claim under state law. *See* Pet.7. And to the extent those decisions rest on federal constitutional grounds, they represent a marked departure from the great weight of federal and Utah authority.

⁹ Robinson’s cited state court decisions largely rely on state authority or are factually distinguishable from *Deck* and from the present case. For instance, *People v. Fierro*, 821 P.2d 1302, 1321-22 (Cal. 1991), rests at least in part on California statutory history. And it recognizes that “while the dangers of unwarranted shackling at the preliminary hearing are real, they are not as substantial as those presented during trial.” *Id.* Next, *State v. Luthi*, 549 P.3d 712, 716 (Wash. 2024), in extending the rule of non-restraint to non-jury hearings, relies on *Deck* without directly addressing *Deck*’s express language limiting its rule to visible restraints in the presence of the jury. *Luthi* leans heavily on Washington caselaw emphasizing the historical connection between shackling and slavery, including *State v. Jackson*, 467 P.3d 97 (Wash. 2020). *See* 549 P.3d at 716. *Jackson* relies on the racist history of shackling and on the Washington State Constitution, *see* 467 P.3d at 102—considerations completely absent from *Deck*. *People v. Allen*, 856 N.E.2d 349 (Ill. 2006), extends *Deck*’s rule to apply to non-visible restraints, despite acknowledging that “*Deck* does not speak to the circumstances present here.” And *People v. Best*, 979 N.E.2d 1187, 1189 (N.Y. 2012), which applies the non-restraint rule to bench proceedings only where “the factfinder is the trial judge rather than a jury,” relies in part on the assumption that “the sight of a defendant in restraints may unconsciously influence even a judicial factfinder.” Neither here nor in *Deck* is the trial judge acting as a factfinder.

In sum, Robinson seeks a rule that has been directly or implicitly disavowed by Blackstone, the Supreme Court, every federal appellate court to date, and the Utah Court of Appeals. He then asks the Court to delay his trial to create this rule on interlocutory review, all on the tenuous authority of a handful of state-court rulings at odds with federal and Utah consensus. The Court should decline to do so.

b. Although not obligated to do so, the trial court made an individualized determination in Robinson's case.

As discussed, the constitutional right of non-restraint does not apply in non-jury proceedings. Thus, the trial court was not obligated to conduct an individualized analysis before ordering that Robinson be restrained during pre-trial proceedings. But even if the right of non-restraint applied before trial, Robinson's claim would still fail on its facts: the trial court found that in this case, restraints are necessary for courtroom safety.

Even at a jury trial, the federal Constitution permits restraints if the trial court makes a "'thorough and independent determination' of the need for courtroom security devices." Pet.15 (quoting *United States v. Wardell*, 591 F.3d 1279, 1295 (10th Cir. 2009)). Courts have "discretion[] to take account of special circumstances, including security concerns, that may call for shackling to protect the courtroom and its occupants." *Deck*, 544 U.S. at 633–34. "[M]indful of

the tragedy that can result if judges are not able to protect themselves and their courtrooms,” trial courts are to have “latitude in making individualized security determinations.” *Id.* 632. “A trial judge is not required to wait until an outburst actually occurs before determining proper security measures for the courtroom.” *State v. Young*, 853 P.2d 327, 351 (Utah 1993), *overruled on other grounds by Deck*, 544 U.S. 622. Although restraints are subject to “close judicial scrutiny,” *Wardell*, 591 F.3d at 1293 (citing *Estelle v. Williams*, 425 U.S. 501, 504 (1976)), the decision ultimately “lies within the informed discretion of the trial court and will not be disturbed on appeal unless that discretion was clearly abused.” *Hack*, 782 F.2d at 867.

Trial courts consider factors such as a defendant’s history and physical condition, the crime charged, the severity of the potential sentence, the court’s ability to minimize prejudice, the need to maintain safety and decorum, and security officers’ recommendations. *See United States v. Apodaca*, 843 F.2d 421, 431 (10th Cir. 1988). And though a trial court may not “delegate [its] discretion to another party,” *see* Pet.15, the court is entitled to “rely heavily on the marshal’s advice.” *Id.* (quoting *United States v. Samuel*, 431 F.2d 610, 614 (4th Cir. 1970), *cert. denied*, 401 U.S. 946 (1971)). “Court security is the joint effort of law enforcement

and the judiciary.” Utah R. Jud. Admin. 3-414(1)(A).¹⁰ And “two circumstances” — “the court’s articulation of a defendant-specific necessity determination, and (2) the court’s steps to minimize the risk of prejudice—strongly support the conclusion that the district court did not abuse its discretion.” *Wardell*, 591 F.3d at 1295-96.

The trial court here was well within its discretion in deciding that restraints are necessary to maintain courtroom safety in Robinson’s pre-trial hearings. The court considered all of Robinson’s arguments, including his lack of criminal history or misconduct in custody, his rights to dignity and communication with counsel, and the potential for prospective juror prejudice. Add. F at 6. The court

¹⁰ This stands to reason, because criminal proceedings are inherently risky business. For instance, in 2014 an unrestrained Utah defendant rushed across the courtroom and vaulted into the witness stand brandishing a ballpoint pen shiv, in under two seconds. *Angilau v. United States*, No. 216CV00992JEDPJ, 2018 WL 1278393, at *4 (D. Utah Mar. 9, 2018). See also <https://www.cbsnews.com/news/siale-angilau-video-us-marshal-shooting-gang-member-utah-courtroom/>.

In a Michigan courtroom in 2016, a partially-restrained defendant disarmed an officer and shot four people, killing two bailiffs. See <https://apnews.com/article/8c87cdd0d6724d00b2a55be3a383ff9c>.

And just last year, it took an unrestrained Las Vegas defendant less than three seconds to hurdle the bench and tackle the judge to the floor. See <https://www.youtube.com/watch?v=zEnzLlSFNi8>.

Similar instances abound. Trial judges can—and should—rely on expert security advice, because courtroom tragedies can—and do—erupt in the blink of an eye.

“balanced Mr. Robinson’s right to a fair trial, right to the effective assistance of counsel, and right to due process [against] the security concerns apparent in this case.” *Id.* On balance, the court found that the security risks weighed heavier. *Id.* 7.

The court noted that Robinson’s charges were “extraordinarily serious”¹¹ with a potential death sentence, and that the case has attracted extensive publicity and will draw abnormally large crowds, rendering many courtroom variables beyond the court’s control. *Id.* 7, 52, 59. Given these unique circumstances, the court found that “strong security protocols” are needed to ensure safety and order. Add. F at 6-7. The court reasonably concluded that to ensure courtroom safety, Robinson should be restrained at pre-trial hearings. *Id.* 7.

Even so, the court took steps to minimize possible prejudice. It has ordered the Sheriff to use minimal restraints. *Id.*¹²

¹¹ Indeed, “substantial evidence” (including video surveillance, DNA forensics, and Robinson’s own spontaneous written confessions) shows that after careful planning, Robinson fired a hunting rifle 160 yards into a crowd of adults and children to kill a person he had never met—because he disagreed with the man. Add. B. In that context, it was no abuse of discretion to conclude that in the confined and crowded courtroom—where Robinson is all but certain to disagree with an attorney, a witness, the judge—Robinson presents a significant risk of violence.

¹² Robinson views this as an impermissible delegation of authority. *See* Pet.15. But the court—not the Sheriff—made the decision to restrain Robinson.

[REDACTED], and ordered that Robinson will appear in civilian clothing at all pre-trial hearings. Add. H at 4-5; Add. F at 4-5. And it has prohibited photography and videography of the restraints. Add. F at 7, Add. I at 5.

Given the nature of Robinson's charges and the unique security situation presented by the high public interest in the case, the court reasonably determined that restraints are necessary for courtroom safety and order. Even so, the court also took steps to mitigate prejudice. Thus, the court did not abuse its discretion in ordering restraints. Because Robinson shows no likelihood of success on appeal, any interlocutory review at this stage would merely serve to delay trial. For this reason also, Robinson's petition should be denied.

CONCLUSION

For the foregoing reasons, the petition should be denied.

Add. F at 5-7. The court simply took the additional reasonable step of instructing the Sheriff to minimize the restraints to the extent possible. *Id.* 7. And nothing in the record suggests that the court will rubber-stamp the Sheriff's recommendations: it has already, over the Sheriff's objections, authorized civilian clothing [REDACTED]. And it has invited Robinson to renew his motion if he disagrees with the Sheriff's assessment. The trial court has not ceded its decision-making authority to the Sheriff.

Respectfully submitted on December 11, 2025.

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Addenda

Addendum A

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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,	INFORMATION
Plaintiff,	
vs.	Case No.
TYLER JAMES ROBINSON	Judge
	OTN: 70090584
DOB: 	BAIL:
SID: 	
Defendant.	

The State of Utah, by and through the Utah County Attorney's Office, charges the defendant with the commission of the following offense(s):

COUNT 1: AGGRAVATED MURDER, a Capital Felony, in violation of Utah Code Ann. § 76-5-202, in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, intentionally or knowingly caused the death of Charlie Kirk under the following circumstance: (iii) the defendant knowingly created a great risk of death to another individual other than Charlie Kirk and the defendant.

NOTICE: Conviction of this offense may carry the death penalty, or, pursuant to Utah Code 76-3-207.7, a mandatory term of imprisonment: (i) for life without parole; or (ii) an indeterminate term of not less than 25 years and that may be for life.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

NOTICE: If the trier of fact finds beyond a reasonable doubt that the victim targeting enhancement applies, the sentencing judge or the Board of Pardons and Parole shall consider the defendant's selection of the victim as an aggravating factor.

VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD – AGGRAVATING FACTOR: The sentencing judge or the Board of Pardons and Parole shall consider as an aggravating factor in their deliberations that the defendant committed a violent criminal offense in the presence of a child.

COUNT 2: FELONY DISCHARGE OF A FIREARM CAUSING SERIOUS BODILY INJURY, a First Degree Felony, in violation of Utah Code Ann. § 76-11-210(2) and (3)(c), in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, discharged a firearm in the direction of Charlie Kirk, knowing or having reason to believe that Charlie Kirk may be endangered by the discharge of the firearm, and the act caused serious bodily injury to Charlie Kirk.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

NOTICE: If the trier of fact finds beyond a reasonable doubt that the victim targeting enhancement applies, the sentencing judge or the Board of Pardons and Parole shall consider the defendant's selection of the victim as an aggravating factor.

VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD – AGGRAVATING FACTOR: The sentencing judge or the Board of Pardons and Parole shall consider as an aggravating factor in their deliberations that the defendant committed a violent criminal offense in the presence of a child.

COUNT 3: OBSTRUCTION OF JUSTICE, a Second Degree Felony, in violation of Utah Code Ann. § 76-8-306(2), in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, with intent to hinder, delay, or prevent the investigation, apprehension, prosecution, conviction, or punishment of any person regarding conduct that constitutes a criminal offense: (c) concealed or removed the firearm used to shoot Charlie Kirk; and the conduct that constitutes an offense would be a capital felony or first degree felony.

COUNT 4: OBSTRUCTION OF JUSTICE, a Second Degree Felony, in violation of Utah Code Ann. § 76-8-306(2), in that on or about September 11, 2025, in Utah County, the defendant, Tyler James Robinson, with intent to hinder, delay, or prevent the investigation, apprehension,

prosecution, conviction, or punishment of any person regarding conduct that constitutes a criminal offense: (c) destroyed, concealed, or removed the clothing he wore during the shooting; and the conduct that constitutes an offense would be a capital felony or first degree felony.

COUNT 5: TAMPERING WITH A WITNESS, a Third Degree Felony, in violation of Utah Code Ann. § 76-8-508, in that on or about September 10, 2025, in Utah County, the defendant, Tyler James Robinson, (a)(i) believed that an official proceeding or investigation was pending or about to be instituted; or (ii) intended to prevent an official proceeding or investigation; and (b) attempted to induce or otherwise cause his roommate to (ii) withhold testimony, information, a document, or an item, to wit: directing his roommate to delete incriminating text messages.

COUNT 6: TAMPERING WITH A WITNESS, a Third Degree Felony, in violation of Utah Code Ann. § 76-8-508, in that on or about September 11, 2025, in Utah County, the defendant, Tyler James Robinson, (a)(i) believed that an official proceeding or investigation was pending or about to be instituted; or (ii) intended to prevent an official proceeding or investigation; and (b) attempted to induce or otherwise cause his roommate to (ii) withhold testimony or information, to wit: directing his roommate to stay silent if police questioned the roommate.

COUNT 7: VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD, a Class A Misdemeanor, in violation of Utah Code Ann. § 76-3-203.10(2) and § 76-3-203.14(3)(a)(ii) in that on or about September 10, 2025, in Utah County, the defendant, Tyler James Robinson, committed criminal homicide in the physical presence of a child younger than 14 years old, with knowledge that a child was present and may have seen or heard the commission of the criminal homicide.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

PROBABLE CAUSE STATEMENT: Brian Davis of the Utah State Bureau of Investigations, having probable cause to believe that the defendant committed the above-listed offense(s), submitted the following evidence in support of the filing of this Information:

On September 10, 2025, at approximately 12:23 p.m., Charlie Kirk was shot and killed while speaking to a large crowd on the campus of Utah Valley University (UVU) in Orem, Utah. (Counts 1 and 2). Police found the suspected murder weapon, a bolt-action .30-06 rifle nearby. Over the next approximately 33 hours, police conducted a manhunt for the shooter until the evening of September 11, 2025, when Tyler James Robinson surrendered to police at the Washington County Sheriff's Office. DNA consistent with Robinson was found on the rifle's trigger. After shooting Mr. Kirk, Robinson hid the gun (Count 3), discarded the clothing he wore when he fired the rifle (Count 4), and told his lover/roommate to delete incriminating text messages

(Count 5) and not to talk to police (Count 6). Children were present at the time of the shooting (Count 7).

The Shooting.

Turning Point USA, a non-profit organization founded in 2012 by Charlie Kirk, organized a public, outdoor event to be held at noon on September 10, 2025, at UVU. The event was the first in a series of similar events to be held at college campuses nationwide. Mr. Kirk is a well-known conservative activist, famous for these types of events where he discusses various political issues and debates with audience members. His events and comments have garnered a significant number of supporters and drawn the ire of many who disagree with his political views.

The event at UVU was announced far in advance and garnered significant publicity and interest. Consequently, several hundred people attended. Mr. Kirk was interacting with the crowd before the event officially got underway. Then, approximately at noon, Mr. Kirk seated himself under a portable canopy behind a table and microphone. He began speaking to the crowd and fielding questions from attendees, a format Mr. Kirk commonly used at his events. Mr. Kirk allowed his questioners to approach a microphone positioned directly in front of him.

Mr. Kirk's team members were very close to him on his right and left, as well as some behind his canopy and others at various close locations near him. The large crowd surrounded Mr. Kirk on three sides. Temporary metal fencing separated attendees from Mr. Kirk by only a matter of feet. Directly above and behind Mr. Kirk was the UVU Hall of Flags, an indoor walkway spanning several hundred feet with floor-to-ceiling glass windows which overlook the plaza where Mr. Kirk was seated. People were in the walkway at the time of the shooting.

Approximately fifteen minutes into the event, Mr. Kirk was answering a question about mass shootings by transgender individuals when a gunshot rang out. The bullet struck Mr. Kirk in the neck. He slumped to the ground almost immediately. The bullet's trajectory passed closely to several other individuals beside Mr. Kirk, including the questioner who was standing directly in front of Mr. Kirk. Children were visible near Mr. Kirk's stage when he was shot.

Mr. Kirk was rushed to a nearby hospital where he was declared deceased. The Medical Examiner's report is pending.

The UVU Surveillance Investigation.

At the moment of the shot, a UVU police officer (the UVU Officer) was watching the crowd from an elevated vantage point. As soon as he heard the shot, he began to scan the area for threats. Believing the shot came from a rifle because of its sound, he looked for potential sniper positions. He noted a roof area approximately 160 yards away from Mr. Kirk as a potential shooting position and rushed there to look for evidence.

The suspected shooting position is adjacent to an open, publicly-accessible walkway. To access the suspected location, a person must climb over a railing and then drop to the roof only slightly below. The UVU officer climbed over the railing and down onto the roof. He then walked to the suspected shooting position and confirmed a clear shooting corridor between the position and Mr. Kirk's seat. He also noticed markings in the gravel rooftop consistent with a sniper having lain on the roof – impressions in the gravel potentially left by the elbows, knees, and feet of a person in a prone shooting position.

Police reviewed surveillance from the camera covering the roof and discovered that it recorded an individual dressed in dark clothing cross the railing from the public walkway and drop onto the roof at approximately 12:15 p.m. Although the individual moved out of the camera's view for a short time, the camera again captured the individual running across the roof and then low-crawling to the area the UVU Officer recognized as where the suspected sniper had dropped into a prone shooting position. After a short time, which matches the known time of the shot, the individual arose and ran across the roof to the northeast.

This discovery led to an intensive review of UVU surveillance recordings to attempt to track and identify the suspect. Surveillance revealed the following. At approximately 11:51 a.m., the suspect entered campus from the north. He is seen wearing a black shirt with an American flag in its center, a dark baseball cap, and large sunglasses. Throughout the surveillance, the suspect keeps his head down and rarely raises his head enough to get a clear image of his face. As he proceeds across the campus, he is seen walking with an unusual gait. The suspect walks with very little bending in his right leg – consistent with a rifle being hidden in his pants. This unusual gait continues until the suspect is seen crossing the railing off the open walkway and onto the roof, where he leaves the camera's view.

A camera later captures the suspect as he runs across the roof to the suspected shooting position. Immediately after the shot was fired, a camera captures the suspect running across the roof carrying an item whose shape is consistent with a rifle. The suspect is then seen climbing down from the roof. He appears to drop the item he was carrying as he hits the ground in a controlled fall. He then picks up the item and runs toward the northeast end of campus.

Expanded Crime Scene Investigation.

Law enforcement officers followed the suspect's escape path to the northeast end of campus, where they believed the suspect left campus and entered a wooded area. In that wooded area, investigators found a bolt-action rifle wrapped in a towel. The rifle contained one spent round and three unspent rounds. This is consistent with the facts officers observed at the time of, and immediately after the shooting—no shell casings were found on the roof, suggesting a bolt-action rather than an auto-loading weapon, and only a single round was fired.

Each round in the rifle contained an etched inscription as follows:

Fired cartridge:	NoTices Bulge OWO What's This?
Second cartridge:	Hey Facist! Catch! [arrow symbols]
Third cartridge:	O Bella ciao, Bella ciao Bella ciao Ciao, ciao!
Fourth cartridge:	If you Read This, You Are GAY Lmao

The rifle, ammunition rounds, and towel were sent for forensic processing. DNA consistent with Robinson's was found on the trigger, other parts of the rifle, the fired cartridge casing, two of the three unfired cartridges, and the towel.

Law enforcement was unable to immediately locate the shooter, so they published photos of the shooter from the UVU surveillance cameras and asked for the public's help to identify him. Meanwhile, law enforcement continued to try to identify the shooter through other means.

The Washington County Investigation.

On the evening of September 11, 2025, as law enforcement continued their investigation, Tyler James Robinson, went to the Washington County Sheriff's Office with his parents and a family friend to turn himself in.

Robinson's mother stated the following to police. On September 11, 2025, the day after the shooting, Robinson's mother saw the photo of the shooter in the news and thought the shooter looked like her son. Robinson's mother called her son and asked him where he was. He said he was at home sick and that he had also been at home sick on September 10th. Robinson's mother expressed concern to her husband that the suspected shooter looked like Robinson. Robinson's father agreed.

Robinson's mother explained that over the last year or so, Robinson had become more political and had started to lean more to the left – becoming more pro-gay and trans-rights oriented. She stated that Robinson began to date his roommate, a biological male who was transitioning genders. This resulted in several discussions with family members, but especially between Robinson and his father, who have very different political views. In one conversation before the shooting, Robinson mentioned that Charlie Kirk would be holding an event at UVU, which Robinson said was a “stupid venue” for the event. Robinson accused Kirk of spreading hate.

Robinson's father reported that when his wife showed him the surveillance image of the suspected shooter in the news, he agreed that it looked like their son. He also believed that the rifle that police suspected the shooter used matched a rifle that was given to his son as a gift. As a result, Robinson's father contacted his son and asked him to send a photo of the rifle. Robinson did not respond. However, Robinson's father spoke on the phone with Robinson. Robinson implied that he planned to take his own life. Robinson's parents were able to convince him to meet at their home.

As they discussed the situation, Robinson implied that he was the shooter and stated that he couldn't go to jail and just wanted to end it. When asked why he did it, Robinson explained there is too much evil and the guy [Charlie Kirk] spreads too much hate. They talked about Robinson turning himself in and convinced Robinson to speak with a family friend who is a retired deputy sheriff. At Robinson's father's request, the family friend met with Robinson and his parents and convinced Robinson to turn himself in.

The family friend spoke to police and reported telling Robinson that it would be best if he brought all evidence with him to the sheriff's office to avoid police having to search his parent's home. The family friend also asked Robinson if he had any clothes that were related to what he did. Robinson replied that he had disposed of the clothes in different areas.

The Roommate.

Police interviewed Robinson's roommate, a biological male who was involved in a romantic relationship with Robinson. The roommate told police that the roommate received messages from Robinson about the shooting and provided those messages to police.

On September 10, 2025, the roommate received a text message from Robinson which said, “drop what you are doing, look under my keyboard.” The roommate looked under the keyboard and found a note that stated, “I had the opportunity to take out Charlie Kirk and I'm going to take it.” Police found a photograph of this note.

The following text exchange then took place.

After reading the note, the roommate responded, “What????????????? You’re joking, right?????”

Robinson: I am still ok my love, but am stuck in orem for a little while longer yet. Shouldn’t be long until I can come home, but I gotta grab my rifle still. To be honest I had hoped to keep this secret till I died of old age. I am sorry to involve you.

Roommate: you weren’t the one who did it right????

Robinson: I am, I’m sorry

Roommate: I thought they caught the person?

Robinson: no, they grabbed some crazy old dude, then interrogated someone in similar clothing. I had planned to grab my rifle from my drop point shortly after, but most of that side of town got locked down. Its quiet, almost enough to get out, but theres one vehicle lingering.

Roommate: Why?

Robinson: Why did I do it?

Roommate: Yeah

Robinson: I had enough of his hatred. Some hate can’t be negotiated out. If I am able to grab my rifle unseen, I will have left no evidence. Going to attempt to retrieve it again, hopefully they have moved on. I haven’t seen anything about them finding it.

...

Roommate: How long have you been planning this?

Robinson: a bit over a week I believe. I can get close to it but there is a squad car parked right by it. I think they already swept that spot, but I don’t wanna chance it

...

Robinson: I’m wishing I had circled back and grabbed it as soon as I got to my vehicle. ... I’m worried what my old man would do if I didn’t bring back grandpas rifle ... idek if it had a serial number, but it wouldn’t trace to me. I worry about prints I had to leave it in a bush where I changed outfits. didn’t have the ability or time to bring it with. ... I might have to abandon it and hope they don’t find prints. how the fuck will I explain losing it to my old man. ...

only thing I left was the rifle wrapped in a towel. ...

remember how I was engraving bullets? The fuckin messages are mostly a big meme, if I see “notices bulge uwu” on fox new I might have a stroke alright im gonna have to leave it, that really fucking sucks. ...

judging from today I'd say grandpas gun does just fine idk. I think that was a \$2k scope ;-;

...

Robinson: delete this exchange

Robinson: my dad wants photos of the rifle ... he says grandpa wants to know who has what, the feds released a photo of the rifle, and it is very unique. Hes calling me rn, not answering.

...

Robinson: since trump got into office [my dad] has been pretty diehard maga.

...

Robinson: Im gonna turn myself in willingly, one of my neighbors here is a deputy for the sheriff.

Robinson: you are all I worry about love

Roommate: I'm much more worried about you

Robinson: don't talk to the media please. don't take any interviews or make any comments. ... if any police ask you questions ask for a lawyer and stay silent

The Search of Robinson's Residence.

Police executed a search warrant on Robinson's residence. During that search, police discovered a shell casing with etchings like the etchings found on the shells in the rifle near UVU. Police also found several targets with bullet holes in Robinson's home.

Count 1: Aggravated Murder pertains to Robinson's shooting and killing of Charlie Kirk in a manner that exposed others, in addition to Mr. Kirk, to a great risk of death.

Count 2 Felony Discharge of a Firearm pertains to Robinson's shooting toward Mr. Kirk, knowing that doing so would endanger those in the bullet's path. The shot caused serious bodily injury to Mr. Kirk, ultimately resulting in his death.

Count 3: Obstructing Justice pertains to Robinson's removal and hiding of the rifle he used to shoot Mr. Kirk.

Count 4: Obstructing Justice pertains to Robinson's removal and hiding of the clothing he wore when he shot Mr. Kirk.

Count 5: Witness Tampering pertains to Robinson's statement to his roommate telling his roommate to delete their text exchange that followed the shooting.

Count 6: Witness Tampering pertains to Robinson's statement to his roommate telling the roommate, "if any police ask you questions ask for a lawyer and stay silent."

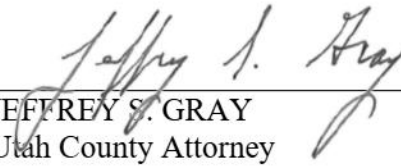
Count 7: Violence Offense Committed in the Presence of a Child pertains to Robinson's shooting of Mr. Kirk in the presence of children under the age of 14 who were visible at the event.

Based upon evidence received from Brian Davis of the Utah State Bureau of Investigations, I have reason to believe the defendant committed the offense(s) as charged herein.

Authorized for presentment and filing on September 16, 2025.

UTAH COUNTY ATTORNEY'S OFFICE

Sworn to by:



JEFFREY S. GRAY
Utah County Attorney

Addendum B

The Order of the Court is stated below:

Dated: September 12,
2025
08:40:00 AM

/s/ SHAWN R HOWELL

DISTRICT COURT JUDGE



**IN THE PROVO DISTRICT COURT DISTRICT COURT
FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH

v.

Tyler James Robinson

Order to Hold Without Bail

Probable Cause ID : 505275

Submission ID : 3307381

Judge : SHAWN R HOWELL

Based on the affirmation of Brian Davis, the arresting officer, the undersigned magistrate finds that probable cause existed for the arrest without a warrant of Tyler James Robinson.

The current offense is a Capital Felony and the court finds substantial evidence to support the charge.

Therefore, the court orders that Tyler James Robinson is to be held without bail.

Addendum C

JEFFREY S. GRAY # 5852
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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

STATE'S NOTICE OF INTENT
TO SEEK THE DEATH PENALTY

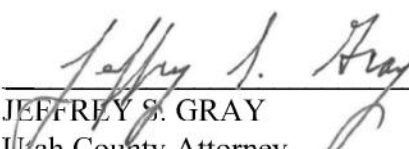
Case No. 251403576

Judge Tony F. Graf, Jr.

The State of Utah, by and through its counsel, Jeffrey S. Gray, Utah County Attorney, and pursuant to Utah Code Ann. § 76-5-202(3) (2022), hereby gives notice of its intent to seek the death penalty for Count 1, Aggravated Murder, as charged in the Information. The decision to seek the death penalty is based on the available evidence and circumstances and nature of the crime.

Submitted this 16th day of September 2025.

UTAH COUNTY ATTORNEY'S OFFICE



JEFFREY S. GRAY
Utah County Attorney

CERTIFICATE OF DELIVERY

I hereby certify that I caused the State's Notice of Intent to Seek the Death Penalty to be filed on September 16, 2025, through the Court's e-filing system with a copy thereof to Defendant's duly appointed or retained counsel, as determined at his first appearance.

UTAH COUNTY ATTORNEY'S OFFICE

/s/ Jeffrey S. Gray

Addendum D

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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT'S MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS and MEMORANDUM IN SUPPORT Case No. 251403576 Honorable Tony F. Graf, Jr.
--	---

Defendant, Tyler James Robinson, by and through undersigned counsel hereby moves the Court for an order permitting Mr. Robinson to appear at all proceedings in civilian clothing and without physical restraints. As articulated herein, this motion is grounded in Mr. Robinson's rights to a fair trial, to Due Process of law, the presumption of innocence, and to a reliable

penalty determination under State and Federal constitutional provisions, including the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution and to article I, sections 7 and 12 of the Utah Constitution.

REQUESTED RELIEF TO DETERMINE MOTION

Prior to the determination of the Motion, the Court should order the following:

1. An order compelling the Utah County Sheriff Department to disclose any and all files, records, correspondence, and reports created by or in the possession of the Department relating to Defendant's motion.
2. A temporary order allowing Mr. Robinson to appear in civilian clothing and without visible restraints at any in-person, public hearing held prior to the determination of this motion.
3. A closed hearing for the Court to receive evidence regarding the need for physical restraints in this particular case and the opportunity to further brief this issue.

MEMORANDUM

Mr. Robinson makes two requests: (1) to allow him to appear at all proceedings in civilian attire; and (2) to be without physical restraints during all in-person hearings—both pretrial and trial. These requests are necessary to maintain the presumption of innocence, to protect Mr. Robinson's rights to a fair and impartial trial, and to maintain courtroom decorum and dignity.

Recognizing that the Court must make an individualized assessment of a purported need for physical restraints, Mr. Robinson asks the Court for an order directing the Utah County Sheriff's Department to disclose relevant records and for the opportunity to supplement this motion after an evidentiary hearing on the issue of physical restraints. To avoid the very prejudice this motion seeks to prevent, Mr. Robinson requests a temporary order from the Court allowing Mr. Robinson to appear at any pretrial proceedings in civilian clothing and without visible restraint while this

motion is pending, and a further order granting a closed hearing at which the Court can take evidence regarding the need for physical restraints in this particular case.¹

I. The Law of Courtroom Restraints.

The presumption of innocence lies at the heart of our system of criminal justice. *See Estelle v. Williams*, 425 U.S. 501, 503 (1976). In a series of cases, the Supreme Court has held that constitutional principles of due process and non-constitutional principles of fair administration of justice require courts not to impose excessive physical restraints on the accused, who is still presumed innocent.

In *Illinois v. Allen*, the Supreme Court wrote that an accused could be tried while shackled and gagged, or even removed from the courtroom altogether, but only as last resorts based on the accused's repeated and aggravated refusals to behave in court. 397 U.S. 337, 344 (1970). Defendant Allen earned such rare treatment in his jury trial by repeatedly disrupting the proceedings to the extent that an orderly trial was impossible if he was present and able to speak and interrupt. *Id.* at 346-47.

In *Holbrook v. Flynn*, the Court found acceptable the presence of uniformed police in the front row of the courtroom, finding that security measure was not an “inherently prejudicial” practice, like shackling, that “should be permitted only where justified by an essential state interest specific to each trial.” 475 U.S. 560, 568–69 (1986),

In *Deck v. Missouri*, the Supreme Court made clear that during the guilt phase of a criminal trial, the due process clauses of the Fifth and Fourteenth Amendments forbid routine use of visible shackles. 544 U.S. 622, 626-29 (2005), *abrogated on other grounds by Fry v. Pliler*, 551 U.S. 112

¹ Such a temporary order has precedence. A similar request was granted in another recent, highly publicized death penalty case in Ada County, Idaho while the underlying motion was litigated. *See* Exhibit A (Order Temporarily Granting Defendant’s Motion to Wear Street Clothing).

(2007). Drawing on English sources older than the United States, *Deck* identified the traditional common law rule that defendants “must be brought to the bar without irons, or any manner of shackles or bonds; unless there be evident danger of an escape.” *Id.* at 626 (quoting 4 W. Blackstone, Commentaries on the Laws of England 317 (1769)). Only in “extreme and exceptional cases, where the safe custody of the prisoner and the peace of the tribunal imperatively demand, the manacles may be retained.” *Id.* at 626–27 (quoting 1 J. Bishop, New Criminal Procedure § 955, p. 573 (4th Ed. 1895)). *Deck* then extended the constitutional limits on shackles to the sentencing phase of capital cases, although the defendant is no longer presumed innocent. *Id.* at 633.²

In *Deck*, the Supreme Court explained that “[j]udicial hostility to shackling” effectuates “three fundamental legal principles: (1) preserving the presumption of innocence to which every criminal defendant is entitled; (2) ensuring that the defendant is able to participate meaningfully in his or her defense; and (3) maintaining the dignity of the judicial process. *Id.* at 630–31.

While neither the Supreme Court nor any Utah appellate court have yet addressed the issue in a post-*Deck* case, it has been held that the right to be free from unwarranted courtroom restraints “applies whether the proceeding is pretrial, trial, or sentencing, with a jury or without.” *United States v. Sanchez-Gomez*, 859 F.3d 649, 661 (9th Cir. 2017) (en banc), *vacated on other grounds*,

² The Utah Supreme Court reached a contrary result in the pre-*Deck* case of *State v. Young*, 853 P.2d 327 (Utah 1993). However, even then the *Young* court cautioned: “By holding that shackling at the penalty phase does not inherently violate the due process rights of a defendant, we do not hold that shackling is necessary or appropriate in all capital sentencing proceedings. The mere fact that a jury convicted a defendant of first degree murder is not a sufficient basis for a decision to shackle him during the penalty phase. The trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.” *Id.* at 350–51. The holding in *Young* does not survive *Deck*.

584 U.S. 381 (2018). The right “respects our foundational principle that defendants are innocent until proven guilty” and is implicated by “the perception of any person who may walk into a public courtroom, as well as those of the jury, the judge and court personnel. A presumptively innocent defendant has the right to be treated with respect and dignity in a public courtroom, not like a bear on a chain.” *Id.*

Numerous courts agree. *See, e.g., United States v. Williams* 736 F.Supp.3d 400, 406–07 (W.D. Va. 2024) (“after carefully reviewing this case law, this court would be remiss if it didn’t state its firm conviction that a broader, qualified right of a criminal defendant to be unshackled exists and should be recognized at non-jury proceedings”) (citing *Sanchez-Gomez*); *State v. Luthi* 549 P.3d 712, 713–14 (Wash. 2024) (“the due process right to appear without unjustified restraints applies to every court appearance, including nonjury pretrial hearings.” (internal quotation omitted)); *People v. Best*, 979 N.E.2d 1187, 1189 (N.Y. 2012) (“The routine and unexplained use of visible restraints does violence to each of [the three fundamental legal principles recognized in *Deck*], essential pillars of a fair and civilized criminal justice system that are no less implicated when the factfinder is the trial judge rather than a jury.”); *In re R.W.S.*, 2007 ND 37, ¶ 15, 728 N.W.2d 326 (agreeing with cases finding that “juveniles have the same rights as adult defendants to be free from physical restraints”) (collecting cases); *People v. Allen*, 856 N.E.2d 349, 353 (Ill. 2006) (“even when there is no jury, any unnecessary restraint is impermissible because it hinders the defendant’s ability to assist his counsel, runs afoul of the presumption of innocence, and demeans both the defendant and the proceedings.”); *People v. Fierro*, 821 P.2d 1302, 1322 (Cal. 1991) (“restrictions on the use of physical restraints at trial should apply at a preliminary hearing” because “the policies which underlie such restrictions have application to other proceedings as

well.”); *State v. Doe*, 333 P.3d 858, 870-71 (Idaho Ct. App. 2014) (due process requires that juveniles be afforded the same rights as adults to be free from physical restraints at trial.)

These cases and many others demonstrate two critical points. First, decisions about extraordinary restraints are decisions for the judge and cannot be delegated to security or correctional personnel. Second, the reasons for the limits on such extraordinary restraints apply to criminal hearings broadly; those reasons are not limited to only what a jury might see.

A. No Delegation of the Judicial Responsibility

One central theme of the law of courtroom restraints is that the trial judge is the person responsible for making the decisions. The judge cannot simply delegate that responsibility to the Sheriff’s Department or other correctional or security staff.

The Utah Supreme Court has made this point by holding in *Chess v. Smith*, that a trial judge has the responsibility to inquire as to why a defendant is appearing in court in prison clothes, even in the absence of defense objection. 617 P.2d 341, 345 (Utah 1980). *See also State v. Bennett*, 2000 UT 34, ¶ 7, 999 P.2d 1 (“Absent such an inquiry and a reasoned determination that such an appearance is necessary, automatic reversal is the consequence.”); *Young*, 853 P.2d at 350–51 (“The trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.”).

The federal courts have more explicitly held that a trial court cannot delegate decision-making on the issue of physical restraints or courtroom attire to a third party. *See, e.g., Sanchez-Gomez*, 859 F.3d at 661 (“Courts cannot delegate this constitutional question to those who provide security, such as the U.S. Marshals Service.”); *United States v. Wardell*, 591 F.3d 1279, 1294–95 (10th Cir. 2009) (collecting cases and emphasizing that trial court has “legal duty to make a

thorough and independent determination” of need for device); *Lopez v. Thurmer*, 573 F.3d 484, 493 n.2 (7th Cir. 2009) (“although a trial court’s decisions about the required level of security during a trial are entitled to deference, those decisions must be made by the court itself; the trial judge may not delegate his discretion to another party”) (internal quotation omitted); *United States v. Miller*, 531 F.3d 340, 345 (6th Cir. 2008) (trial judge abused discretion by deferring without explanation to marshal’s recommendation that defendant wear stun-belt in jury trial) (“a district court’s blind adherence to a corrections officer’s recommendation, without making any individualized determinations or specific findings, amounts to an abuse of discretion”); *Gonzalez v. Plier*, 341 F.3d 897, 902 (9th Cir. 2003) (“The use of physical restraints is subject to close *judicial*, not law enforcement, scrutiny.” (emphasis in original)); *United States v. Durham*, 287 F.3d 1297, 1304 (11th Cir. 2002) (same).

This need for a decision by the judge runs through the Supreme Court’s decisions on courtroom restraints, as well. *See Allen*, 397 U.S. at 343 (judge “must be given sufficient discretion to meet the circumstances of each case. No one formula for maintaining the appropriate courtroom atmosphere will be best in all situations.”); *Deck*, 544 U.S. at 629, (Fifth and Fourteenth Amendment prohibit use of physical restraints visible to the jury “absent a trial court determination, in the exercise of its discretion, that they are justified by a state interest specific to a particular trial”).

B. It’s Not Just About the Jury.

The use of courtroom restraints has been litigated most often when the restraints are used during jury trials. That’s where the dangers of unfair prejudice are most severe, and where, if any restraints are to be used, the usual course is to ensure they are never visible to the jury. Yet the

reasons for the limits on courtroom restraints apply more broadly. They weigh in favor of applying those limits to pretrial proceedings. The Court laid out these reasons in *Deck v. Missouri*.

First, of course, the criminal justice system presumes the defendant is innocent unless and until proved guilty. *Deck*, 544 U.S. at 630. “Visible shackling undermines the presumption of innocence and the related fairness of the factfinding process.” *Id.* By necessity, judges are trusted to be less vulnerable than lay jurors to this and other forms of unfair prejudice. However, the psychological reality is that the human beings who serve on the bench are likewise not immune to such subconscious and subliminal influence from seeing a human being in chains to protect others from him. *See, e.g., People v. Hamlett*, 193 N.Y.S.3d 658, 663 (N.Y. 2023) (“It cannot merely be assumed that judges are immune from the prejudice and bias caused by visible shackles. We judges are human, and the sight of a defendant in restraints may unconsciously influence even a judicial factfinder.”).

Second, *Deck* invoked the right to counsel because full shackles can interfere with the accused's ability to communicate with his lawyer. 544 U.S. at 631 (quoting *Allen*, 397 U.S. at 344). Courts have long expressed concerns that shackles can be heavy and painful, distracting the accused from focusing on his defense. *E.g., Durham*, 287 F.3d at 1304 (restraints “may confuse the defendant, impair his ability to confer with counsel, and significantly affect the trial strategy he chooses to follow”); *People v. Harrington*, 42 Cal. 165, 168 (1871), quoted in *Deck*, 544 U.S. at 631. These forms of interference do not depend on whether a jury is present or even on whether the shackles are visible.

Third, and most important here, “judges must seek to maintain a judicial process that is a dignified process.” *Deck*, 544 U.S. at 631. The *Deck* Court continued:

The courtroom's formal dignity, which includes the respectful treatment of defendants, reflects the importance of the matter at issue, guilt or innocence, and

the gravity with which Americans consider any deprivation of an individual's liberty through criminal punishment. And it reflects a seriousness of purpose that helps to explain the judicial system's power to inspire the confidence and to affect the behavior of a general public whose demands for justice our courts seek to serve.

Id. This dignity is for the good of the institution and the public.

In *Allen*, the Supreme Court acknowledged that the use of shackles and gags in court “is itself something of an affront to the very dignity and decorum of judicial proceedings that the judge is seeking to uphold.” 397 U.S. at 344. Indeed, “[a] presumptively innocent defendant has the right to be treated with respect and dignity in a public courtroom, not like a bear on a chain.” *Sanchez-Gomez*, 859 F.3d at 661. “We must not exaggerate the distance between ‘us,’ the lawful ones, the respectable ones, and the prison and jail population; for such exaggeration will make it too easy for us to deny that population the rudiments of humane consideration.” *Johnson v. Phelan*, 69 F.3d 144, 152 (7th Cir. 1995) (Posner, C.J., dissenting).

Such routine treatment is unfair to the defendant, and it diminishes the courts:

Courtrooms are palaces of justice, imbued with a majesty that reflects the gravity of proceedings designed to deprive a person of liberty or even life. A member of the public who wanders into a criminal courtroom must immediately perceive that it is a place where justice is administered with due regard to individuals whom the law presumes to be innocent. That perception cannot prevail if defendants are marched in like convicts on a chain gang. Both the defendant and the public have the right to a dignified, inspiring and open court process. Thus, innocent defendants may not be shackled at any point in the courtroom unless there is an individualized showing of need.

Sanchez-Gomez, 859 F.3d at 662. The Ninth Circuit went on to emphasize that these institutional concerns are present whether the hearing is before a jury or a judge:

We must take seriously how we treat individuals who come into contact with our criminal justice system—from how our police interact with them on the street to how they appear in the courtroom. How the justice system treats people in these public settings matters for the public's perception, including that of the defendant. Practices like routine shackling and “perp walks” are inconsistent with our constitutional presumption that people who have not been convicted of a crime are innocent until proven otherwise. That's why we must

examine these practices more skeptically than those deployed in an institutional setting . . . We must treat people with respect and dignity even though they are suspected of a crime.

Id. at 665 (internal citations omitted). The Utah Supreme Court made essentially the same point in condemning trials of the accused in prison garb:

It would seem that the occurrence of a defendant, armed with a presumption of innocence, standing trial before a jury in prison clothes should long ago have ceased. A decent respect for basic fairness and the indignity of appearing in a court of law in clothes which mark a defendant, who has not been convicted, as a lawbreaker would suggest as much.

Chess, 617 P.2d at 345.

C. The Factors To Be Considered and The Need For A Hearing.

Because of the inherently prejudicial impact of appearing shackled before the jury, courtroom shackling is permitted only “as a last resort.” *See Allen*, 397 U.S. at 344 (“[N]o person should be tried while shackled and gagged except as a last resort.”); *Holbrook*, 475 U.S. at 568–69 (“[S]hackling[] should be permitted only where justified by an essential state interest specific to each trial.”). Reviewing courts require a showing of necessity before tolerating a trial court’s decision to shackle. *See, e.g., United States v. Brantley*, 342 F. App’x 762, 770 (3d Cir. 2009) (“[Shackling] is an extreme measure, that the Supreme Court considers ‘a last resort.’ Any court considering such an extreme measure must first establish that it is actually necessary, not simply a matter of practice or convenience. And in making such a determination, a district judge must scrupulously ‘make a case specific and individualized assessment’ that supports his decision to shackle a defendant and provides a reviewing court with an adequate record.”).³ Thus, “a trial judge may ... impose restraints only when ‘confronted with disruptive, contumacious, [and]

³ *Spain v. Rushen*, 883 F.2d 712, 728 (9th Cir.1989) (same) cert. denied, 495 U.S. 910 (1990); *Elledge v. Dugger*, 823 F.2d 1439, 1452 (11th Cir.1987) (same) cert. denied, 485 U.S. 1014 (1988); *Tyars v. Finner*, 709 F.2d 1274, 1284–85 (9th Cir.1983) (same); *People v. Duran*, 545 P.2d 1322, 1327 (Cal. 1976) (same); *Bello v. State*, 547 So.2d 914, 918 (Fla.1989) (same).

stubbornly defiant defendants” and shackling “must be limited to cases urgently demanding that action.” *Tyars*, 709 F.2d at 1284 (quoting *Allen*, 397 U.S. at 343). *See also State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991) (“An accused may be physically restrained if needed to prevent an escape, resort to violence, or disruption of the trial.”).

Furthermore, before a court may shackle a disruptive defendant, it must first “pursue less restrictive alternatives.” *Spain*, 883 F.2d at 721; *see also Tyars*, 709 F.2d at 1284. Lesser restraints may include increasing courtroom security personnel, warning the defendant of the consequences of disruptive behavior, such as the possibility of contempt or removal. *See Spain*, 883 F.2d at 726.

Under decided case law, a defendant is also entitled to an adequate opportunity to challenge untested information that serves as the basis for courtroom restraints and to address all other factors relevant to a decision to impose restraints. *See United States v. Durham*, 287 F.3d 1297, 1307 (11th Cir. 2002) (conviction vacated because in deciding that restraints were necessary, the trial court denied the defendant’s request for an evidentiary hearing and “did not make any findings on critical factual matters”); *Zygadlo v. Wainwright*, 720 F.2d 1221, 1223–24 (11th Cir. 1983) (due process may require an evidentiary hearing if the factual basis for security procedures was in dispute); *State v. Moen*, 491 P.2d 858, 860–61 (Idaho 1971) (defendant should be afforded a reasonable opportunity to meet the information); *State v. Tolley*, 226 S.E.2d 553, 368 (S.C. 1976) (evidentiary hearing is required).

II. The Law Prohibiting Court Appearances in Jail or Prison Clothing.

Although the right to appear free from unjustified restraint arises most often in shackling cases, federal and state courts recognize that other courtroom practices implicate due process as well. For example, the Supreme Court has held that “compelling [a defendant] to wear jail clothing” violates due process because it “furthers no essential state policy” and creates “an

unacceptable risk ... of impermissible factors coming into play.” *Estelle*, 425 U.S. at 505; *see also State v. Daniels*, 2002 UT 2, ¶ 21, 40 P.3d 611 (“Compelling an accused to wear identifiable prison clothing at a jury trial, absent exceptional circumstances, has been held to be inherently prejudicial.”); *United States v. Portillo-Quezada*, 469 F.3d 1345, 1350 (10th Cir. 2006) (“defendants who are compelled to appear before the jury in handcuffs, shackles or prison attire suffer prejudice which unconstitutionally undermines the presumption of innocence.”), quoted in *United States v. Folse* (D.N.M., Jan. 18, 2019, No. CR 15-2485 JB) 2019 WL 266745, at *5 (“As the Court sees little argument against Folse wearing civilian clothing [at sentencing], the Court will permit him to dress in such articles.”).

As with the rule forbidding unnecessary shackling, the rationale of forbidding the defendant’s court appearance in civilian clothing extends beyond its effect on potential jurors. As the Colorado Supreme Court found in the very first case in this country prohibiting trial in jail or prison clothing, “the mind of a prisoner would be as much disturbed and his mental faculties as much confused and embarrassed by carrying on his person such brand of incarceration” as “requiring a prisoner to wear the word ‘County Jail’ branded upon his clothing[.]” *Eaddy v. People*, 174 P.2d 717, 718 (Co. 1946). The *Eaddy* Court further stated that requiring either shackles or jail garb,

. . . is a mockery, an indignity and a humiliation not consonant with innocence and freedom. The presumption of innocence requires the garb of innocence, and regardless of the ultimate outcome, or the evidence awaiting presentation, every defendant is entitled to be brought before the court with the appearance, dignity, and self-respect of a free and innocent man, except as the necessary safeguard and decorum of the court may otherwise require

Id. at 718-19.

Similarly, the Utah Court of Appeals has held in order to protect the presumption of innocence—a “basic component of a fair trial”—criminal defendants are entitled to the indicia of

innocence. *Mitchell*, 824 P.2d at 473 (quoting *Estelle*, 425 U.S. at 503). Indicia of innocence include the right of a criminal defendant to be tried wearing civilian clothing rather than clothing identifiable as prison or jail attire. *See id.* As reasoned by the Utah Supreme Court,

The prejudicial effect that flows from a defendant's appearing before a jury in identifiable prison garb is not measurable, and it is so potentially prejudicial as to create a substantial risk of fundamental unfairness in a criminal trial.

Chess, 617 P.2d at 344 (Utah 1980).

And unlike other indicia of guilt, i.e. physical restraints, the Supreme Court and the Utah Court of Appeals have recognized that “compelling an accused to wear jail clothing furthers no essential state policy[.]” *Mitchell*, 824 P.2d at 473. *See also Estelle*, 425 U.S. at 505 (“[C]ompelling an accused to wear jail clothing furthers no essential state policy.”); *Hernandez v. Beto*, 443 F.2d 634, 636-37 (5th Cir. 1971) (“The wearing of prison garb certainly could have little or nothing to do with security precautions in this case.”).

III. The Application of The Law to This Case.

A. Mr. Robinson Should Be Permitted to Don the Indicia of Innocence.

In the modern age of ubiquitous internet access and unrelenting media attention to high-profile criminal cases, the prejudicial effect of a criminal defendant appearing in shackles, jail attire, and bullet-proof or suicide vests at any hearing threatens fundamental fairness. These appearances increase the likelihood that the future jury pool will be exposed to Mr. Robinson in this state. In this case, where publication of each and every pretrial hearing is a foregone conclusion and where Mr. Robinson faces the potential penalty of death, additional care must be taken to ensure Mr. Robinson receives a fair trial by an impartial jury. *See Sampson v. United States*, 724 F.3d 150, 163 (1st Cir. 2013) (“The right to an impartial jury is nowhere as precious as when a defendant is on trial for his life.”).

Indeed, the Supreme Court “has stressed the ‘acute need’ for reliable decisionmaking when the death penalty is at issue.” *Deck*, 544 U.S. at 633. Reliable decision-making must be grounded in admissible evidence, not on innuendo derived from a defendant’s custodial status. *See Holbrook*, 475 U.S. at 567 (“Central to the right to a fair trial, guaranteed by the Sixth and Fourteenth Amendments, is the principle that one accused of a crime is entitled to have his guilt or innocence determined solely on the basis of the evidence introduced at trial, and not on grounds of official suspicion, indictment, continued custody, or other circumstances not adduced as proof at trial.”)

Illustrative of the magnitude of the issue, on September 16, 2025 at 3:00 p.m. Mr. Robinson appeared for the first time in this case from the Utah County Jail via Webex. The hearing was streamed live and covered by media outlets the world over including the BBC, Al Jazeera, ABC, CBS, NBC, Newsweek, NPR, the Daily Mail, Fox News, CNN and countless others, generating approximately 18,000 news search results.⁴ Mr. Robinson’s physical appearance alone was and is subject to endless scrutiny and speculation. One article described Mr. Robinson during his initial appearance as “emotionless” and “star[ing] blankly ahead” and “sporting slightly mussed locks, several days’ worth of facial hair” and wearing “a green ‘suicide smock[.]’”⁵ With each development in the case generating thousands of articles and comments online, the likelihood of potential jurors seeing and drawing conclusions regarding Mr. Robinson’s guilt and or deserved punishment from obvious signs of pretrial incarceration will only increase.

⁴ An October 5, 2025 search in Google “News” tab of “Tyler Robinson first court appearance” generated over 18,000 results including articles and videos from the media outlets listed here.

⁵ Nesi, Chris, *Tyler Robinson emotionless*, NY POST (posted 9/16/2025, 5:28 p.m. ET), *available at* <https://nypost.com/2025/09/16/us-news/tyler-robinson-emotionless-wearing-suicide-smock-in-first-virtual-court-appearance-since-charlie-kirk-assassination/>.

Indeed, given the pervasive media coverage in this case, the repeated and ubiquitous display of Mr. Robinson in jail garb, shackles, and a suicide vest will undoubtedly be viewed by prospective jurors and will inevitably lead to prospective juror perception that he is guilty and deserving of death. *See, e.g.,* Street, Kylene L., et al. *The Cloak of Innocence: Perception of Attire in the Courtroom*, J. of Police & Criminal Psychology (2024):1-11 (empirical study finding that a defendant dressed in a prison jumpsuit versus a dress suit was seen as “more aggressive” , and that this perceived aggressiveness resulted in defendants being found 5.27 times more likely than mock jurors in the formal attire condition to render a guilty verdict than a not guilty verdict.”)⁶; Nancy Mehrkens Steblay et al., *The Effects of Pretrial Publicity on Juror Verdicts: A Meta-Analytic Review*, 23 LAW & HUM. BEHAV. 219 (1999) (The effect of pretrial publicity on juror verdicts was examined through a meta-analysis of 44 empirical tests representing 5,755 subjects, finding that subjects exposed to negative PTP were significantly more likely to judge the defendant guilty compared to subjects exposed to less or no negative PTP.)⁷

In the face of worldwide scrutiny, permitting Mr. Robinson to wear civilian clothing for court appearances is a minor inconvenience compared to the already present concerns with securing a fair trial before an impartial jury.

B. The Court Must Make an Individualized Assessment to Justify Any Restraints and in This Case Shackling of Mr. Robinson Is Not Justified.

The Court should allow Mr. Robinson to appear at all proceedings without restraint. Given the need for a particularized evaluation of the circumstances of this case, the Court should order appropriate disclosures by the relevant governmental entities (i.e. the Utah County Sheriff

⁶ Available at <https://link.springer.com/article/10.1007/s11896-024-09710-w>.

⁷ https://scholar.google.com/scholar?hl=en&as_sdt=0%2C5&q=The+Effects+of+Pretrial+Publicity+on+Juror+Verdicts%3A+A+Meta-Analytic+Review&btnG=.

Department) and thereafter take evidence on this issue. Mr. Robinson requests the opportunity to supplement briefing after the evidentiary hearing.

“The rule that a defendant be tried in the ‘garb of innocence’ has generally been extended to include a defendant’s right to be tried without being shackled, chained, bound, handcuffed, gagged, or otherwise physically restrained.” *Mitchell*, 824 P.2d at 473. The use of restraints “is itself something of an affront to the very dignity and decorum of judicial proceedings” that the Court seeks to uphold. *Allen*, 397 U.S. at 344. In addition, even when not visible, restraints impact the ability of the criminal defendant to participate in the proceedings by causing confusion or distraction, impairing communication between the defendant and his counsel, and creating discomfort or pain. As stressed in *Allen*, “one of the defendant’s primary advantages of being present at the trial, his ability to communicate with his counsel, is greatly reduced when the defendant is in a condition of total restraint.” *Id.* See also *Spain*, 883 F.2d at 720–21 (“The lower federal courts have observed two further weaknesses in imposing physical restraints: they may confuse and embarrass the defendant, thereby impairing his mental faculties; and they may cause him pain.”); *Zygadlo v. Wainwright*, 720 F.2d 1221, 1223 (11th Cir. 1983) (even non-visible shackles “may confuse the defendant, impair his ability to confer with counsel, and significantly affect the trial strategy he chooses to follow” (internal quotation and citations omitted)).

As discussed above, the Supreme Court has found that “the Fifth and Fourteen Amendments prohibit the use of physical restraints visible to the jury absent a trial court determination, in the exercise of its discretion, that they are justified by a state interest specific to a particular trial.” *Deck*, 544 U.S. at 629. Thus, trial courts should carefully consider the need (or lack thereof) for restraints “to prevent an escape, resort to violence, or disruption of the trial.” *Mitchell*, 824 P.2d at 473; see also *U.S. v. Bell*, 819 F.3d 310, 321 (7th Cir. 2016) (“restraints,

because they are regarded as an extreme measure, should be employed only in the presence of a special need” (cleaned up)). A defendant appearing in unjustified visible restraints is a due process violation so serious that, on appeal, the State must show the defendant was not prejudiced beyond a reasonable doubt. *See, e.g., U.S. v. Morales*, 758 F.3d 1232, 1237 (10th Cir. 2014).

Mr. Robinson is a twenty-two-year-old, life-long resident of the State of Utah. He has no criminal history⁸ and, upon information and belief, has been polite, deferential to jail staff, and without any disciplinary issue while in the Utah County Jail. Although he has been accused of (but not convicted of) aggravated murder, that fact alone is insufficient to justify restraints. *See Young*, 853 P.2d at 350–51 (“The mere fact that a jury convicted a defendant of first degree murder is not a sufficient basis for a decision to shackle him during the penalty phase.”). Mr. Robinson intends to exercise his right to be present at all stages of these criminal proceedings as constitutionally guaranteed. *See* U.S. Const. XI, XIV; Utah Const. art. I, § 12. This Court should allow him to exercise this right without looking “like a bear on a chain.” *Sanchez-Gomez*, 859 F.3d at 661.

As noted above, the world is watching Mr. Robinson and these proceedings. Even in pretrial proceedings, additional care must be taken to preserve the presumption of innocence and to prevent tainting the pool of jurors that will ultimately decide Mr. Robinson’s guilt or innocence, and if guilty, if Mr. Robinson should receive the death penalty. As such, the Court should order the appropriate disclosures by the Utah County Sheriff Department and thereafter set a hearing for the production of evidence necessary for the Court’s determination.

Finally, given that court and jail security protocols and prejudicial material and opinions not admissible at the guilt phase of this trial will be evidenced at the hearing, it is reasonable and appropriate for this Court to close those proceedings and maintain the transcript, evidence, and

⁸ *See* Document 3 (Public Safety Assessment Report), on file with the Court.

pleadings commenting thereupon as private in the record. *See generally Kearns-Trib. Corp., Publisher of Salt Lake Trib. v. Lewis*, 685 P.2d 515, 524 (Utah 1984) (“[I]f disclosure of the allegedly prejudicial material is essential to the conduct of the hearing on the motion for closure, the court should first seek a voluntary agreement from the parties who wish to be present that they will not disclose the allegedly prejudicial information until it is disclosed at the trial or the trial has concluded. Absent such an agreement, the court may close the courtroom in order to conduct in camera whatever proceedings cannot be conducted without disclosure of the allegedly prejudicial information.” (citation omitted)).

CONCLUSION

Based upon the foregoing, the Court should order relief consistent with Mr. Robinson’s request.

DATED this 9th day of October, 2025.

Respectfully submitted,

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 9th day of October, 2025, which served all attorneys of record.

/s/ Kathryn N. Nester
Kathryn N. Nester

Exhibit A

SEP 25 2024

IN THE DISTRICT COURT OF THE FOURTH JUDICIAL DISTRICT OF
THE STATE OF IDAHO, IN AND FOR THE COUNTY OF ADA

By *TRIN* FRIPPLE, Clerk
By ANNA MEYER
DEPUTY

STATE OF IDAHO,

Plaintiff,

v.

BRYAN C. KOHBERGER,

Defendant.

Ada County Case No. CR01-24-31665

**ORDER TEMPORARILY GRANTING
DEFENDANT'S MOTION TO WEAR
STREET CLOTHING**

Before the Court is Defendant's "Motion for Defendant to Wear Street Clothing to All Public Hearings" (Sept. 20, 2024). Having considered the motion and for good cause showing, the Court will TEMPORARILY GRANT the motion for purposes of the hearing noticed for September 26, 2024 only. Civilian clothing must be provided by defense counsel to the Ada County Sheriff's Office in advance of the hearing.¹ At that hearing, a date will be set for a subsequent closed/sealed hearing on Defendant's motion as it pertains to his future appearances. IT IS SO ORDERED.

DATED this 25th day of September, 2024.



Steven Hippler
District Judge

¹ The Court may direct the Ada County Sheriff's Office to employ other security measures related to Defendant's September 26, 2024 appearance.

Addendum E

REDACTED

Addendum F

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

RULING AND ORDER

**GRANTING DEFENDANT'S MOTION
TO STRIKE and**

**GRANTING IN PART AND DENYING IN
PART DEFENDANT'S MOTION TO
APPEAR IN CIVILIAN CLOTHING AND
WITHOUT RESTRAINTS**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson moves for an order permitting him to appear in civilian clothing and without physical restraints at all pre-trial hearings. (Dkt. 83).

Due to the potential for the disclosure of court security protocols, the court held a closed hearing on October 24, 2025. The parties discussed the following issues:

- Mr. Robinson's Motion to Strike the Sheriff's Response;
- Mr. Robinson's Motion to Appear in Civilian Clothing and without Physical Restraints;
- The Sheriff and Mr. Robinson's request to exclude visual recording and photographs in the courtroom; and
- The State's request to have all non-evidentiary hearings held remotely.

The parties stipulated that the State's motion to conduct all non-evidentiary hearings virtually and the parties' request to limit all electronic media coverage needs further briefing. Those issues are not yet ripe for decision. To facilitate the briefing on those two issues, the court orders as follows:

- If the State seeks to have all non-evidentiary hearings conducted over WebEx, the State must file a motion. The court will not rely on the briefing already provided. A separate motion is required. The time for a response and reply will be governed by rule. As with all motions, the parties must file a request to submit and request a hearing, if desired.
- If the parties seek to have all electronic media coverage limited or restricted during in-court hearings, the parties may file a joint motion. The court will not rely on the briefing already provided. In their motion, the parties must address the factors outlined in Rule 4-401.01(2) of the Utah Rules of Judicial Administration. The time for response and reply will be governed by rule, and the parties must file a request to submit when the matter is ripe for decision.

The court took the Motion to Strike and the Motion to Appear in Civilian Clothing and Without Restraint under advisement. The court now issues the following RULING and ORDER:

1. Defendant's Motion to Strike the Sheriff's Response

The prosecution and the Sheriff's Department filed a joint opposition to Mr. Robinson's motion to wear civilian clothing and appear without physical restraints. (Dkt. 109). Mr. Robinson moved to strike the Sheriff's response as procedurally improper. (Dkt. 111).

At the October 24, 2025, hearing, both parties and the Sheriff's Office agreed that the Sheriff is not a party in this case. The State and Sheriff's Department maintained their position that the Sheriff has standing to file memoranda as a non-party, whereas Mr. Robinson argued the Sheriff has no authority to file memoranda or, at the very least, should be filing separately from the prosecution. However, Mr. Robinson does not dispute that the court may consider the Sheriff's position on courtroom security and do not oppose the court's consideration of that position as written in the State's opposing memorandum.

The Sheriff's Department is not a party in this litigation and its joint memorandum filed with the prosecution is procedurally improper. Therefore, Defendant's Motion to Strike the Sheriff's opposing memorandum is GRANTED.

Even so, Rule 3-414 of the Utah Rules of Judicial Administration requires the court to coordinate courtroom security with the Sheriff's Department. Therefore, as agreed to by Defendant, the court has considered the *substance* of the State and Sheriff's opposing memorandum. The court has also considered the memorandum drafted by the Court Security Director, which was attached to the State's opposition.

If, in the future, the parties have a security concern specific to this case, the parties may present evidence from the Sheriff's Department through affidavits, declarations, exhibits, or witness testimony. This order does not restrict or limit the Sheriff's Department from communicating and coordinating with the court as allowed by statute and by Rule 3-414 of the Rules of Judicial Administration, nor does it prevent the Sheriff's Department from exercising its rights in any other way as allowed by law.

2. Defendant's Motion to Appear in Civilian Clothing and Without Physical Restraints

As an initial matter, the parties agree Defendant has a right to the accoutrements of innocence during a jury trial, including the right to be dressed in civilian clothing and the right to have any physical restraints hidden from a jury's view.

Defendant's motion seeks additional relief beyond his trial rights: he moves to appear without restraints and in civilian clothing at all pre-trial proceedings. Both requests are deviations from the general court security plan, and the court has considered each request separately.

“[A] defendant's right to the physical indicia of innocence must be weighed against ‘the essential state policy of providing security in the courtroom.’ *State v. Lemons*, 844 P.2d 378, 380 (Utah Ct. App. 1992) (quoting *State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991)). The scope of the parties’ arguments and requested relief also impacts the media’s right to report the news and the public’s interest in government transparency. The appropriate balance of each of these concerns implicates the integrity and dignity of the judicial process, which “includes the respectful treatment of defendants.” *Deck v. Missouri*, 544 U.S. 622, 631 (2005); *see* UT R J ADMIN 3-414(1)(A).

a. Defendant’s request to appear in civilian clothing is GRANTED

Defendant first requests that he be allowed to appear in civilian clothing during all pre-trial hearings. He cites to the pervasive media coverage of his initial hearing and argues that “the repeated and ubiquitous display of Mr. Robinson in jail garb . . . will undoubtedly be viewed by prospective jurors and will inevitably lead to prospective juror perception that he is guilty and deserving of death.” (Def.’s Mot. at 15). In his view, allowing Mr. Robinson to appear in civilian clothing is a “minor inconvenience” compared to the real danger of tainting the prospective jury pool and depriving him of a fair trial.

In response, the State, the Sheriff’s Department, and the Court Security Director argue that dressing defendants in jail clothing assists in securing safety and control because it aids court security in easily identifying Mr. Robinson in the event of a disruption. In addition, the opposition notes that there is no controlling precedent that requires the court to allow Mr. Robinson to dress in civilian clothing pre-trial.

Upon balancing the interests at stake, the court concludes that Mr. Robinson’s right to the presumption of innocence and an unbiased jury supersedes the security concerns of dressing in

civilian clothing in this case. The media interest in Mr. Robinson's trial is arguably unprecedented in the State of Utah. Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms. There is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson's jail clothing with indicia of guilt. The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.

The court intends to hold all of Mr. Robinson's hearings as special settings. Unless unforeseen circumstances arise, he will be the only defendant in the court holding cell when he appears. There is a low likelihood that Mr. Robinson will not be able to be identified or tracked by court security if there is commotion in the courtroom. Given these mitigating circumstances and the potential for prejudicial pre-trial publicity tainting the jury pool, the court ORDERS that Mr. Robinson be dressed in civilian clothing for all pre-trial proceedings. Mr. Robinson's attorneys must coordinate with the Utah County Sheriff's Department to ensure this order is carried out and must provide his clothing at least 72 hours before the hearing.

b. Defendant's request to appear without restraints is DENIED

Mr. Robinson next requests that he appear for all pre-trial proceedings without restraints. Mr. Robinson cites to *Deck v. Missouri* and *United States v. Sanchez-Gomez*, 859 F.3d 649 (9th Cir. 2017), vacated and remanded, 584 U.S. 381 (2018) to support his motion. Although he recognizes that *Deck*'s holding is limited to shackling in front of a jury at trial, Mr. Robinson argues the constitutional dangers articulated in *Deck* extend to pre-trial proceedings, particularly in highly publicized cases such as Mr. Robinson's.

Mr. Robinson argues 1) visibly restraining him could taint the potential jury pool and undermine the presumption of his innocence; 2) restraining him without an individualized determination that he is an escape risk or potentially dangerous violates his right to due process and denigrates the dignity of the proceedings; and 3) restraints potentially impact his ability to effectively participate in the proceedings by inhibiting his ability to take notes and communicate with his counsel. His counsel represents that he has no criminal history and has had no disciplinary incidents while incarcerated at the Utah County jail. Thus, the need for restraints is currently unjustified.

The Rules of Judicial Administration require that all in-custody defendants be restrained unless otherwise ordered by the court. *See* UT R J ADMIN 3-414(9)(C). The court has balanced Mr. Robinson's right to a fair trial, right to the effective assistance of counsel, and right to due process with the security concerns apparent in this case. In doing so, the court notes that Mr. Robinson has no criminal history and there is no evidence that he has been disruptive, disrespectful, or a danger since he has been charged.

This case has generated an immense amount of pre-trial publicity. As with many high-profile cases, public interest may both wax and wane, but it is likely to persist. Visual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence. The potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.

On the other hand, the charges against Mr. Robinson are serious. If convicted, he faces potential sentences of life in prison or death. Though these proceedings will focus on legal matters, both Mr. Robinson and court patrons are likely to feel strong emotions. The landscape

that lies ahead requires thoughtful and focused work, and the court will not tolerate disruption or commotion that could have been prevented or mitigated by strong security protocols. The safety of Mr. Robinson, court staff, the attorneys, and patrons is a paramount concern. If a disruption occurs, security personnel will need to quickly secure Mr. Robinson in a place of safety. Restraints will help facilitate their responsibilities and promote controlled and orderly proceedings.

Therefore, the court DENIES Mr. Robinson's request to be unrestrained during pre-trial proceedings. The court directs the Sheriff to perform an individualized assessment of the risks associated with this case and secure Mr. Robinson in the least restrictive manner available to mitigate those risks. If restraints will impede Mr. Robinson's ability to take notes or consult with counsel, Mr. Robinson may move for the court to assess the level of restraints to ensure he receives the effective assistance of counsel.

c. The court will amend the decorum order to mitigate prejudice

To mitigate pre-trial prejudice, the court will amend the Standing Decorum Order to prohibit the media from visually recording or photographing Mr. Robinson's physical restraints. To facilitate this order, the court will also order that the media is prohibited from visually recording or photographing him while he is entering the courtroom, exiting the courtroom, or standing up in the courtroom. In making this amendment, the court has considered the factors listed in Rule 4-401.01(2) and finds as follows:

As already discussed, this is a serious case that has garnered national attention. Visual representations of Mr. Robinson in restraints will likely be broadcast over various platforms. Given their proximity to the case, members of Utah County are likely to see images of Mr.

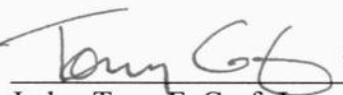
Robinson's restraints. Those images may remain in their minds and give an impression that he is dangerous, an impression that could undermine his presumption of innocence.

The court is committed to open and fair proceedings and recognizes the public's interest in and newsworthiness of these proceedings. The court sees a benefit in allowing the public to observe the proceeding through electronic media coverage. Allowing the public into the courtroom through electronic means increases confidence in our justice system and serves as both an educational tool and an incentive for the public to increase their civic engagement. Limiting visual recording and photography of Mr. Robinson in restraints will not denigrate the public and media's interest. This ruling promotes a healthy balance between preserving Mr. Robinson's constitutional rights and the media and the public's interest in viewing the proceedings.

Accordingly, Defendant's Motion to Wear Civilian Clothing and to Appear Without Restraints is GRANTED IN PART and DENIED IN PART.

Dated this 27th day of October, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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10/27/2025

/s/ TREENA HANSEN

Date: _____

Signature

Addendum G

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IN THE FOURTH JUDICIAL DISTRICT COURT - PROVO

IN AND FOR UTAH COUNTY, STATE OF UTAH

_____	)	
STATE OF UTAH,	)	Case No. 251403576
	)	
Plaintiff,	)	
	)	
v.	)	TRANSCRIPT OF:
	)	RULING
TYLER JAMES ROBINSON,	)	
	)	
Defendant.	)	
_____	)	

BEFORE THE HONORABLE TONY GRAF

HEARING HELD VIA WEBEX

OCTOBER 27, 2025

Court Reporter: Phoebe S. Moorhead, RDR, CRR, UT CSR
Certified Court Reporter for the State of Utah

A P P E A R A N C E S

ALL APPEARANCES VIA WEBEX

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-ooOoo-

1 October 27, 2025

2 **P R O C E E D I N G S**

3 THE COURT: Good afternoon. Court is now in session.
4 Calling Case 251403576, State of Utah vs. Tyler James Robinson.

5 Will the parties please enter their appearances?

6 MR. BALLARD: Your Honor, Christopher Ballard and
7 Chad Grunander on behalf of the state.

8 MS. NESTER: Your Honor, Kathy Nester, Richard Novak,
9 and Staci Visser on behalf of Mr. Robinson.

10 THE COURT: Thank you. Welcome to both the
11 prosecution and defense. And Mr. Robinson I understand is
12 appearing by WebEx.

13 Mr. Robinson, can you hear us?

14 THE DEFENDANT: Yes, I can.

15 THE COURT: Thank you. Good afternoon to you all.

16 We're here on the Tyler James Robinson motion to
17 appear in civilian clothing and without physical restraints at
18 all pretrial hearings. Because of some of the arguments
19 involved in court security protocols, the Court held a closed
20 hearing on October 24th, 2025.

21 During that hearing, the parties addressed several
22 related matters. The first, Mr. Robinson's motion to strike
23 the sheriff's response; the second, Mr. Robinson's motion to
24 appear in civilian clothing and without physical restraints;
25 the third, the sheriff's and Mr. Robinson's requests to limit

1 or exclude visual recording and photography in the courtroom;
2 and finally, the fourth matter, the state's request to have all
3 non-evidentiary hearings held remotely.

4 The parties have stipulated that the state's request
5 to hold non-evidentiary hearings virtually as well as the
6 parties' joint request to limit electronic media coverage both
7 require further briefing. Those issues are not yet ready for
8 the Court's decision.

9 To facilitate that briefing, the Court directs as
10 follows. If the state wishes to have all non-evidentiary
11 hearings conducted via WebEx, it must file a separate motion.
12 The Court will not rely on prior briefing. The standard
13 timelines for response and reply apply, and the parties must
14 file a request to submit and request a hearing if desired.

15 If the parties seek to limit or restrict electronic
16 media coverage, they may file a joint motion. Again, the Court
17 will not rely on prior briefing. That motion must address the
18 factors set forth in Rule 4-401.01(2) of the Utah Rules of
19 Judicial Administration. Standard response and reply times
20 apply, and the parties must file a request to submit once the
21 matter is ripe for decision.

22 The Court undertook advisement -- took under
23 advisement two issues: the motion to strike and the motion to
24 appear in civilian clothing and without restraints. The Court
25 now issues its ruling.

1 In regards to the motion to strike the sheriff's
2 response, the prosecution and the sheriff's department filed a
3 joint opposition to the defendant's motion to appear in
4 civilian clothing and without restraints. Mr. Robinson moved
5 to strike the sheriff's portion of that filing, arguing it was
6 procedurally improper because the sheriff is not a party.

7 At the hearing, all agreed that the sheriff's
8 department is not a party in this case. The state and the
9 sheriff's office nevertheless argued that the sheriff may file
10 memoranda as a nonparty. Mr. Robinson disagreed, but did not
11 object to the Court considering the sheriff's position on
12 security.

13 The Court finds that the sheriff's department is not
14 a party to this case; and, therefore, its joint filing with the
15 prosecution was procedurally improper. Accordingly,
16 Defendant's motion to strike the sheriff's response is granted.

17 However, under Rule 3-414 of the Utah Rules of
18 Judicial Administration, the Court is required to coordinate
19 courtroom security with the sheriff's department. Consistent
20 with that rule and with the defendant's agreement, the Court
21 has considered the substance of the state's opposition and the
22 memorandum prepared by the court security director that was
23 attached to it. Going forward, if either party has a security
24 concern specific to this case, they may present evidence from
25 the sheriff's department by affidavit, declaration, exhibit, or

1 testimony. This order does not limit the sheriff's
2 department's ability to coordinate with the Court or otherwise
3 act as authorized by law.

4 Turning to the motion to appear in civilian clothing
5 and without physical restraints. The parties agree that during
6 trial, a defendant has a right to appear in civilian clothing
7 and that any restraints must be concealed from the jury.

8 Mr. Robinson now seeks to extend those rights to all pretrial
9 proceedings. The Court considered each request separately.

10 In relation to requests to appear in civilian
11 clothing, Mr. Robinson asks to appear in civilian clothing at
12 all pretrial hearings. He argues that the extensive media
13 coverage of this case creates a real risk of prejudice if the
14 public and potential jurors repeatedly see him in jail attire.

15 The state, the sheriff's department, and the court
16 security director opposed the request, arguing that jail
17 clothing assists with safety and identification. The Court has
18 balanced these competing concerns. The case has attracted
19 extraordinary public and media attention. Images of
20 Mr. Robinson in jail clothing are likely to circulate widely
21 and influence prospective jurors. Given the scale of that
22 publicity, the risk of prejudice is significant.

23 However, Mr. Robinson's -- let me see here. As
24 previously stated, Mr. Robinson sits before this Court presumed
25 innocent, and that presumption remains unless and until each

1 element of every offense charged against him is proved beyond a
2 reasonable doubt. To date, this has not occurred, and the
3 presumption of innocence remains.

4 Balancing these factors, the Court finds that
5 Mr. Robinson's right to the presumption of innocence outweighs
6 the minimal inconvenience of permitting civilian attire, and
7 Mr. Robinson shall be dressed as one who is presumed innocent.
8 Accordingly, the defendant's request to appear in civilian
9 clothing for all pretrial proceedings is granted.

10 Defense counsel is directed to coordinate with the
11 jail to ensure that this order is implemented. And the Court
12 further orders that the clothing be provided 72 hours prior to
13 any hearing.

14 To the second request, requests to appear without
15 physical restraints, Mr. Robinson also requests to appear
16 unrestrained during pretrial proceedings. He argues that
17 visible restraints would prejudice potential jurors, undermine
18 his dignity, and interfere with his ability to communicate with
19 counsel.

20 Rule 3-414(9)(c) of the Utah Rules of Judicial
21 Administration requires that all in-custody defendants be
22 restrained unless otherwise ordered by the Court. The Court
23 recognizes that Mr. Robinson has no criminal history and no
24 record of misconduct while in custody. However, the charges he
25 faces are extraordinarily serious, carrying potential penalties

1 of life imprisonment or death. The safety of Mr. Robinson, the
2 attorneys, court staff, and the public must remain the Court's
3 highest priority. The emotional nature of these proceedings
4 also raise the risk of disruption. Given these factors, the
5 defendant's request to appear without restraints is denied.

6 The Court directs the sheriff's department to conduct
7 an individualized assessment and use the least restrictive
8 restraints necessary to maintain safety. If those restraints
9 impede the defendant's ability to communicate with counsel or
10 take notes, counsel may renew the motion.

11 I wish now to also address the decorum and media
12 restrictions to mitigate any potential prejudice. The Court
13 will amend its standing decorum order. The media will be
14 prohibited from photographing or visually recording
15 Mr. Robinson's restraints and from photographing or recording
16 him while entering, exiting, or standing in the courtroom. In
17 making this amendment, the Court has considered the factors in
18 Rule 4-401.01(2). This is a high-profile case with strong
19 public interest. Restricting the recording of restraints
20 strikes the proper balance between Mr. Robinson's right to a
21 fair proceeding and the public's right to access and
22 transparency.

23 In conclusion, the Court orders as follows.
24 Defendant's motion to strike the sheriff's response is granted.
25 Defendant's motion to appear in civilian clothing is granted.

1 Defendant's motion to appear without restraints is denied. The
2 standing decorum order will be amended to prohibit any visual
3 recording or photography of the defendant's restraints or of
4 the defendant entering or exiting the courtroom.

5 This constitutes the order of the Court and a written
6 order and ruling will be published shortly. Both defense and
7 prosecution have stipulated to vacate the October 30th hearing.
8 Additional time is needed to complete discovery and to file
9 motions addressing whether non-evidentiary hearings should be
10 conducted virtually, whether to impose any blanket restrictions
11 on cameras in the courtroom, and any other motions that may
12 arise.

13 This matter is set to return before the Court on
14 January 16th, 2026, at 1:00 p.m., and again on January 30th,
15 2026, at 1:00 p.m. Both hearings will be heard and held in
16 person with Mr. Robinson present to address these issues.

17 And that concludes the order of this Court. Counsel,
18 thank you for being here. Mr. Robinson, we'll see you on
19 January 16th and January 30th at 1:00 p.m. Court is now in
20 recess.

21 (Proceedings concluded at 1:12 p.m.)
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REPORTER CERTIFICATION

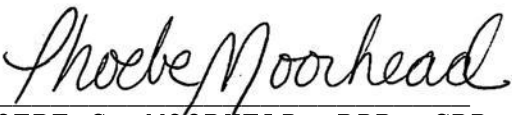
I, PHOEBE S. MOORHEAD, Registered Diplomate
Reporter, do hereby certify:

That the foregoing proceedings were taken before me
at the time and place set forth herein and were taken down by
me in shorthand and thereafter transcribed into typewriting
under my direction and supervision;

That the foregoing pages contain a true and
correct transcription of my said shorthand notes so taken.

I FURTHER CERTIFY that I am neither counsel for nor
related to any party to said action nor in anywise interested
in the outcome thereof.

Certified and dated this 4th day of November, 2025.


PHOEBE S. MOORHEAD, RDR, CRR
Certified Shorthand Reporter
for the State of Utah

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Addendum H
SEALED

Addendum I

**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**STANDING
DECORUM ORDER,
EFFECTIVE OCTOBER 30,
2025**

Case No. 251403576

JUDGE TONY F. GRAF, JR.

Pursuant to the inherent authority of the Court under Utah Code section 78A-2-201 and consistent with Utah Code of Judicial Administration (UCJA) rules 3-414 and 4-401.01 et. seq., the Court enters the following **STANDING DECORUM ORDER** to ensure the safety, security, and orderly conduct of judicial proceedings and to establish standards of conduct for those attending the proceedings in this matter.

The purposes of this Order are to:

- Protect the parties' right to fair and impartial proceedings;
- Protect against unfair prejudice to the parties;
- Ensure preservation of the court record;
- Ensure orderly and efficient management of court proceedings;
- Permit public access to court proceedings; and
- Allow for electronic media coverage of court proceedings.

To achieve these purposes, the Court hereby **ORDERS** as follows:

1. This Order (and its attachments, which are incorporated herein by reference) shall govern the conduct of all media representatives and members of the public attending the hearing.

2. As used herein, the terms "Spectator" and "Spectators" refer to all media representatives and members of the public attending the proceedings, but excludes court personnel, court reporters, counsel of record, and counsel of record's support staff.

PROHIBITED AND/OR RESTRICTED ITEMS

3. **Bags:** No bags of any kind (including backpacks, briefcases, purses, or similar items) are permitted inside the courtroom, unless expressly authorized by court security staff.

4. **Face Coverings:** No face coverings, masks, or other items that obscure the identity of an individual are permitted, except when medically necessary or expressly authorized by the Court.

5. **Dangerous Items:** No weapons, explosives, or other dangerous items are permitted in the courtroom.

COURTROOM SEATING

6. Courtroom 4B has limited seating. The number of Spectators shall not exceed the courtroom capacity.

7. The defendant, counsel of record, counsel's support staff, and the designated victim representative may sit in front of the bar (*i.e.*, at or directly behind counsel tables).

8. All other Spectators must sit behind the bar separating the well from the gallery.

9. The first row on the viewers' left side of the gallery is reserved for family members of the alleged victim.

10. The first row on the viewers' right side of the gallery is reserved for the defendant's family and friends.

11. The remaining rows of the gallery are open to all Spectators, to the extent courtroom capacity allows.

CONDUCT OF SPECTATORS

12. All Spectators shall follow the instructions of court security staff.

13. All Spectators shall be quiet, civil, and orderly. Spectators shall not engage in any distracting, disruptive, provocative, disrespectful, uncivil, or threatening behavior of any kind.

14. Spectators shall not make any audible comments of any kind; shall not shake or nod their heads; and shall not otherwise make any gestures during the hearing.

15. Spectators shall not wear or display pins, buttons, signs, clothing, or photographs expressing support for or against any person related to this case or the status of this case as a capital offense.

16. Spectators shall not be permitted to pass the bar or enter the well of the courtroom without express authorization from court security staff or the judge.

17. Spectators shall enter and exit the courtroom without causing disruption or distraction. If a Spectator seeks to enter the courtroom during the hearing, that person will need to remain outside of the courtroom until the Court takes a recess or until the hearing concludes, whichever occurs earlier. If a Spectator exits the courtroom during the hearing, that person will need to remain outside the courtroom until the Court takes a recess or until the hearing is concluded, whichever occurs earlier.

18. At the end of each proceeding, all Spectators shall remain in the courtroom until court security staff give permission to leave. The court security staff may, in their discretion, direct Spectators sitting in certain parts of the gallery to leave before Spectators in other parts of the gallery. Spectators shall follow the directions of court security staff and court personnel.

USE OF PORTABLE ELECTRONIC DEVICES

19. “Portable electronic device” means any device that can record or transmit data, images or sounds, or access the internet, including a pager, laptop/notebook/personal computer, handheld PC, PDA, audio or video recorder, wireless device, cellular telephone, or electronic calendar.

20. Spectators shall place all portable electronic devices on “silent” mode. Any portable electronic device that makes an audible sound during court proceedings may be secured by the court security staff and retained until the end of the hearing; at which time it shall be returned to the owner.

21. Consistent with UCJA rule 4-401.02, portable electronic devices may be restricted in certain hearings such as the preliminary hearing and at trial or as otherwise directed by the Court. Court security staff may require that devices be turned off, surrendered, or stored during these proceedings.

22. No audio or video recording, broadcasting, transmitting, or photography is permitted, unless specifically authorized by the Court under UCJA rules 4-401.01 or 4-401.02.

23. When operating a portable electronic device, Spectators must hold the device below the rail in front of the Spectator, so it is clear the device is not being used to record or photograph the proceedings.

24. Use of a portable electronic device in violation of this Order may result in the device being secured by the court security staff and the Spectator being removed from the courtroom, in addition to other penalties outlined below.

ADDITIONAL ORDERS RELATED TO NEWS REPORTERS AND EMC

25. Media vehicles shall be parked along the upper west deck of the parking structure.

26. Media representatives shall identify themselves and produce appropriate identification (photo ID).

27. As used herein, the terms "Electronic Media Coverage" ("EMC") and "News Reporter" have the same meaning as in UCJA rule 4-401.01.

28. Recording or transmitting images or sound of court proceedings without the express permission of the Court is prohibited.

29. EMC of court proceedings is permitted if a News Reporter submits a timely written request as required under UCJA rule 4-401.01 and secures a signed Order for Electronic Media Coverage of Court Proceedings.

30. EMC of court proceedings shall be permitted subject to the terms of this Order, any Order for Electronic Media Coverage of Court Proceedings issued by the court, and any subsequent order related to or restricting EMC.

31. News Reporters shall comply strictly with this Order, any Order for Electronic Media Coverage of Court Proceedings secured by the News Reporter, and all provisions of UCJA rule 4-401.01. Failure to do so may subject the News Reporter to contempt sanctions as allowed by law, removal from court proceedings, and termination of EMC.

32. Unless otherwise approved by the judge or the judge's designee, EMC is limited to one audio recorder and operator, one video camera and operator, and one still camera and operator.

33. The location of cameras, microphones, and other EMC equipment shall be subject to approval by court personnel, with the judge having the final say.

34. After the Court has appointed the pool photographers, it is the responsibility of the media to decide how they will pool their coverage and how they will share audio, video, and photography files produced by the pool coverage.

35. Pool equipment operators shall use equipment that is capable of sharing audio, video, and photographic files to pool recipients in a generally accepted format.

36. The pooling arrangement shall be reached before the court proceedings commence and without imposing on the judge or court personnel.

37. Neither the judge nor court personnel shall be called upon to resolve disputes concerning pooling arrangements.

38. No media interviews will be permitted inside the courtroom.

39. The Court expects News Reporters to respect the wishes of all individuals involved in court proceedings if they wish not to be interviewed or to end an interview.

40. Media representatives shall use their best efforts to avoid visually recording or photographing court employees-except for the judge-without prior approval. This includes court security staff, clerks, and judicial assistants.

41. Visual recordings and photographs of the defendant are prohibited except for when the defendant is seated at counsel table. Media representatives must not visually record or photograph the defendant while he is entering or exiting the courtroom or while he is standing.

42. If the defendant is in physical restraints, media representatives must not visually record or photograph the restraints.

43. During court proceedings, News Reporters shall not move around the courtroom and shall not move their equipment in a way that is disruptive or distracting.

44. In the courtroom, still photographers must remain seated, must set their cameras to operate silently, and must not use flash.

45. No video recording or still photography is permitted in the courthouse lobby.

46. Video recording and still photography is permitted outside of the courthouse (*e.g.*, exterior walkways and parking lot) but shall not include video recording or still photography of employees entering or exiting the employee building or parking entrances.

47. No audio recording is permitted of conferences involving counsel at the counsel tables or during bench conferences with the judge. No visual recording is permitted of a person's lips, so as to be decipherable by a lip reader, during conferences involving counsel at counsel

tables or bench conferences with the judge. No one may "zoom in" on anything on counsel's tables or the bench to identify any writings.

48. News Reporters shall address all complaints and concerns to Tania Mashburn, Director of Communication, Administrative Office of the Courts.

COPIES OF THIS ORDER TO BE POSTED AND READ

49. Copies of this Order shall be posted outside the courtroom. A copy may also be requested by email addressed to 4thgrafteam@utcourts.gov.

50. All Spectators shall read and comply with the terms of this Order.

51. As needed to ensure compliance, notice of this Order may also be given verbally by court security staff and/or court personnel.

ENFORCEMENT AND/OR PENALTIES FOR VIOLATIONS

52. Anyone who violates the terms of this Order may be removed from the court proceedings and may lose access to future proceedings.

53. Anyone who willfully violates the terms of this Order shall be subject to contempt proceedings or referral to law enforcement. Contempt proceedings may result in sanctions which may include:

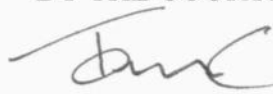
- a. An order of temporary or permanent exclusion from the courtroom and security areas;
- b. An order of temporary or permanent exclusion of the media organization represented by the offender from the courtroom and security areas;
- c. Contempt of Court sanctions, punishable by confinement in the Utah County Jail for up to 30 days and a fine not to exceed \$1,000 for each offense; and
- d. Such other sanctions as deemed necessary by the judge. to ensure due process and the interests of justice.

EXCEPTIONS

Court personnel, court reporters, court security staff, law enforcement officers, attorneys, attorneys' staff and individuals with prior written authorization from the Court are exempt from applicable restrictions as necessitated by their official duties.

DATED this 27th day of October, 2025.

BY THE COURT:



JUDGE TONY F. GRAF, JR.



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

EMAIL: JEFFREY GRAY DCOURT@UTAHCOUNTY.GOV

EMAIL: CHAD GRUNANDER CHADGR@UTAHCOUNTY.GOV

EMAIL: RYAN MCBRIDE RYANM@UTAHCOUNTY.GOV

EMAIL: CHRISTOPHER BALLARD CBALLARD@UTAHCOUNTY.GOV

10/27/2025

/s/ TREENA HANSEN

Date: _____

Signature